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CHAPTER 4: PERMITTED USES

Chapter 4 established the uses allowed by right and the uses allowed subject to special review, accessory uses, and temporary uses in each zone district. All uses not listed for a zone district are prohibited; except in the B-2 zone district, where uses not listed are allowed by special review. All uses require a development permit.

4-10: PERMITTED AND SPECIAL REVIEW USES

Table 4-1 lists the uses allowed within all zoning districts. Each of the listed uses is defined in Chapter 11.

4-10-10: EXPLANATION OF TABLE ABBREVIATIONS

(a) Allowed By-Right Uses

“A” in a cell indicates that the use is allowed by right as a primary use of land in that zone district. Permitted uses are subject to all other applicable regulations of this Land Use Code, including the use-specific standards set forth in this chapter and the requirements of Chapters 5 and 7. A land use listed as an “A” use in the Primary Use portion of Table 4-1 cannot be accessory to another, different primary use of land on the same parcel.

(b) Special Review Uses

“S” in a cell indicates that, in the respective zone district, the use is allowed as a primary use of land only if reviewed and approved as a special use in accordance with the procedures of Sec. 2-40-20. Unless otherwise stated in this Land Use Code or in a special review use approval, special review uses are subject to all other applicable regulations of this Land Use Code, including the use-specific standards set forth in this chapter and the requirements of Chapters 5 and 7. A land use listed as an “S” use in the Primary Use portion of Table 4-1 cannot be accessory to another, different primary use of land on the same parcel. If a use is listed in Table 4-1 as an “S” use in a specific zone district, but was an “A” use in that same zone district under the previous code, then on and after the 5th of July, 2006 the landowner shall be deemed to have applied for and obtained a Special Review Use Permit for such use.

(c) Master Plan Uses

“M” in a cell indicates that the use is only permitted if approved as part of a Master Plan for lands in the SKI-REC and P-I districts, pursuant to Sec. 2-40-80 and either Secs. 3-40-120 or 3-70-10, as applicable. Unless otherwise stated in this Land Use Code or in a master plan approval, master plan uses are subject to all other applicable regulations of this Land Use Code, including the use-specific standards set forth in this chapter and the requirements of Chapters 5 and 7.

(d) Prohibited Uses

A blank cell indicates that the use is prohibited in the respective zoning district.

(e) Accessory and Temporary Uses

Some uses by right and special review uses are only permitted as accessory uses to a different, principal use of the property, and are generally not permitted to occur before the principal use has been established or after it has ended. Other uses by right and special review uses are permitted only as temporary uses. Status as an accessory or temporary use is shown by including the use in the Accessory or Temporary Use section of Table 4-1, or by identifying the accessory or temporary nature of the use in use-specific standards. A use listed in the Accessory or Temporary Use sections of Table 4-1 are not available as primary uses of the land unless they are also listed in the Primary Use portion of the table. Home occupations are a special form of accessory use, and are also only permitted if accessory to the principal use of the property as a dwelling occupied by one (1) or more of the same persons conducting the home occupation.

(f) Use-Specific Standards

Regardless of whether a use is allowed by right or permitted as a special use, there may be additional standards that are applicable to the use. The existence of these use-specific standards is noted through a cross-reference in the last column of the table. Some use-specific standards specify that the use is only permitted as an accessory use to a different, principal, use of the property. Cross-references refer to the Use-Specific Standards in Sec. 4-30. These standards apply in all zone districts unless otherwise specified. If a proposed use does not comply with applicable use-specific standards, it is prohibited.

4-10-20: ONLY ONE PRINCIPAL RESIDENTIAL USE PER LOT OR PARCEL

Only one principal residential use, either by right or by special review, is permitted per lot or parcel, except as allowed by Secs. 3-70-40, 6-30-60, or 6-30-40.

4-10-30: TABLE ORGANIZATION

In Table 4-1, land uses and activities are classified into general “use categories” and specific “use types” based on common functional, product, or physical characteristics, such as the type and amount of activity, the type of customers or residents, how goods or services are sold or delivered, and site conditions. This classification provides a systematic basis for assigning present and future land uses into appropriate zone districts. This classification does not list every use or activity that may appropriately exist within each category, and specific uses may be listed in one category when they may reasonably have been listed in one or more other categories. The use categories are intended merely as an indexing tool and are not regulatory.

4-10-40: USE FOR OTHER PURPOSES PROHIBITED

Approval of a use listed in Table 4-1, and compliance with the applicable use-specific standards for that use, authorizes that use only. Development or use of a property for any other use not specifically allowed in Table 4-1 and approved under the appropriate process is prohibited, unless the use is permitted pursuant to Chapter 9 of this Land Use Code.

4-10-50: CLASSIFICATION OF NEW AND UNLISTED USES

When an application is made for a use category or use type that is not specifically listed in Table 4-1, the Community Development Director shall be authorized to make a determination as to whether the proposed use category or use type is included within the definition of an existing use category or use type in Chapter 11, based on the characteristics of use types and categories set forth in Chapter 11. Any such determination shall be in writing, and a copy of the decision shall be given to the party proposing the use. If the Community Development Director determines that the proposed use type or use category is not included in any existing use type or category, then the proposed use may only be allowed if this Land Use Code is amended to include such use type or category in Table 4-1 and to include a definition of the use type or category in Chapter 11.

4-10-60: PRINCIPAL USES IN RR DISTRICT

In addition to those principal and accessory uses listed in Table 4-1, certain minor uses of land are authorized in the RR zone district pursuant to Sec. 3-40-20.

4-10-70: ACCESSORY USE OR STRUCTURE IN RR, LIR-35, AND AH-PUD DISTRICTS

For those accessory uses available in the RR, LIR-35, and AH-PUD zone districts, as shown in Table 4-1, the following additional conditions shall apply.

- (a) In the LIR-35 zone district accessory structures and uses are limited to those associated with single-family residential use, which may be accompanied by farming or ranching not conducted for the primary purpose of obtaining monetary profit.
- (b) In the AH/PUD zone district commercial uses accessory to the housing development are available by special review.
- (c) In the RR zone district, accessory structures existing before the 5th of July, 2006 may continue in use if a special review approval is obtained, but new accessory structures shall not be erected.

4-10-80: USES IN PUB, I U AND AC/REC-2 DISTRICTS

Uses available in the PUB, I, U and AC/REC-2 zone districts are listed in Sec. 3-80.

4-20: PERMITTED USE TABLE

Permitted, special review, and master plan uses are shown in Table 4-1 below.

TABLE 4-1: Permitted Uses	Intended for Rural Areas														Intended for Urban Areas										Either				
	Rural Districts														Urban / Suburban Residential District										Business & Special Purpose				VLP
Use Category/ Use Type	R S - G	R R	R S - 1 6 0	R S - 35	LI R - 35	T R - 1	T R - 2	R S - 30 & 20	A R - 10	A R - 2	S K I - R E C	B - 1	R - 30	R - 15 & 15 A 15 B	R - 6	V R	M H P	A H	R M F	A H - P U D	B - 2	V C	P - I	T		Use-Specific Regulations §			
Principal Uses of Land																													
	Residential																												
Household Living																													
*Duplex Dwelling Unit											S	M		S	A	S			S		S	S		M	A	A	§4-30-010(a)		
*Mobile Home																		A	A								§4-30-010(c)		
Mobile Home Park																		A											
*Multi-family Dwelling Unit											M	S							S	A	S	S	S	M	A	M	§4-30-010(d)		
Single Family Dwelling Unit		A	A	A	A	A	A	A	A	A	M		A	A	A	A	A	A		A		A	M	A	A	A	§4-30-010(f)		
Group Living																													
Dormitory Housing											M	S						S		S	S		M	S	M				
Group Home													S	S	S												§4-30-010(b)		
Nursing Convalescent Rest, or										S			S	S	S					S		S	M	-			§4-30-010(e)		

TABLE 4-1: Permitted Uses	Intended for Rural Areas													Intended for Urban Areas												Eith		
	Rural Districts													Urban / Suburban Residential District								Business & Special Purpose				VLP		
Use Category/ Use Type	R S - G	R R S - 6 0	R S - 1 6 35	R S - 35	LI R - 35	T R- 1	T R- 2	R S - 30 & 20	A R - 10	A R - 2	S K I - R E C	B - 1	R - 30	R - 15 & 15 A 15 B	R - 6	V R	M H P	A H	R M F	A H - P U D	B - 2	V C	P - I	T		Use-Specific Regulations §		
Retirement Home																												
	Agricultural & Resource																											
Unlisted Agricultural Use			A	A				A	A																	M		
Blacksmithing			S	S				S	S																			
Agricultural Building	S		A	A	S			A	A	A			A											S	M	§4-30-020(a)		
Farming	S	A	A	A	A			A	A	A	M												M	A	M	§4-30-020(b)		
Industrial Hemp Cultivation		S	S	S	S			S	S																	§4-30-020(b)(3)		
Firewood Splitting, Commercial			S	S				S	S	S	M	A									A					§4-30-020(c)		
Horse Boarding Primary	A		A	A				A	S																	§4-30-020(d)		
Kennel or Veterinary Clinic				S				S	S	S		S									S		M	-		§4-30-020(e)		
Logging	S		S	S				S	S		M												M	-		§4-30-020(f)		
Mineral and Gravel Extraction	S		S	S		S	S	S	S	S	M												M			§4-30-020(g)		
Oil and Gas Extraction	S	S	S																							§4-30-020(h)		
Ranching	A	A	A	A	A			A	A	A	M												M			§4-30-020(i),		
Silviculture			A	A				A	A		M														M			
	Civic & Institutional																											
Airport																							M			§4-30-030(a)		
Cemetery			S	S				S	S	S													M	-				
Day Care Center								S	S	S	M	S	S	S	S	S	S	S	S	S	S	S	M	S	M			
Educational Class								S				S									S					§4-30-030(b)		
Hospital																							M			§4-30-030(c)		
Institute											M		S	S	S								M	-		§4-30-030(d)		

TABLE 4-1: Permitted Uses	Intended for Rural Areas												Intended for Urban Areas												Eith		
	Rural Districts												Urban / Suburban Residential District								Business & Special Purpose				V	L	P
Use Category/ Use Type	R S - G	R R S - 6 0	R S - 1 35	R S - 35	LI R - 35	T R - 1	T R - 2	R S - 30 & 20	A R - 10	A R - 2	S K I - R E C	B - 1	R - 30	R - 15 & 15 A 15 B	R - 6	V R	M H P	A H	R M F	A H - P U D	B - 2	V C	P - I	T			Use-Specific Regulations §
Park, Playground or Playfield							S	S	S	S	M		A	A	A	A	A	A	A	A	A	A	A	S	M		
Public Facilities, Major											M	S									S		M				§4-30-030(e)
Public Utilities, Major			S	S	S			S	S	S	S	S	S	S	S	S	S	S		S	S	S	M	S	M		
Public Utilities, Minor			A	A	A	A	A	A	A	A	S	A	A	A	A	A	A	A		A	A	A	M	A	M		
Religious Institution				S	S			S	S	S	M		S	S	S	S						S	M	S	M		§4-30-030(g)
School or University									S	S	M		S	S	S								M				§4-30-030(h)
Sewage Disposal Area or Water Plant			S	S	S			S	S	S	M	S	S	S	S		S	S		S	S		M	S	M		
Transit Facility											M	S									S		M				
Commercial & Industrial																											
Entertainment & Recreation																											
Adult Entertainment Establishment												S									S			S			§4-30-040(a)
Alpine Ski Area & Support											M																
Amusement or Entertainment Establishment											M	S										S		S	M		§4-30-040(b)
Campground			S	S				S	S		M													S	M		§4-30-040(f)
Golf Course											M												M				
Recreational, Other	S	S	S	S				S	S	S	M												M	S	M		§4-30-040(q)
Riding Stable or Academy	S							S	S	S	M													S	M		§4-30-040(w)
Eating, Meeting & Lodging																											

TABLE 4-1: Permitted Uses	Intended for Rural Areas													Intended for Urban Areas												Eith		
	Rural Districts													Urban / Suburban Residential District								Business & Special Purpose				VLP		
Use Category/ Use Type	R S - G	R R S - 6 0	R S - 1 35	R S - 35	LI R - 35	T R- 1	T R- 2	R S - 30 & 20	A R - 10	A R - 2	S K I - R E C	B - 1	R - 30	R - 15 & 15 A 15 B	R - 6	V R	M H P	A H	R M F	A H - P U D	B - 2	V C	P - I	T		Use-Specific Regulations §		
Bed and Breakfast			A	A				A	S	S	M		S	S	S							S				A	§4-30-040(d)	
Country Inn Guest Ranch, and Resort Cabins			S	S				S	S		M											S		S		A	§4-30-040(i)	
Hotels, Motel or Lodge																						S		S		A	§4-30-040(l)	
Meeting Hall or Conference Center				S				S	S		M											S		S		M		
Restaurant and/or Bar											M	A										A	A		S	M	§4-30-040(4)	
Timesharing or Fractional Ownership											M													S			§4-30-040(x)	
	Office and Clinic Uses																											
Financial Institution											M											S	S				§4-30-040(j)	
Medical or Dental Clinic											M											A					§4-30-040(n)	
Office											M	A										A	A	M			§4-30-040(p)	
Research Facility																						S		M			§4-30-040(t)	
	Sales and Service Uses																											
Arts and Craft Studio, Primary												A										A	A		A	M	§4-30-040(h)	
Building Materials and Landscaping								S	S			S										A					§4-30-040(e)	
General Services												S										A					§4-30-040(k)	
Personal Service Outlet											M	A										A	A				§4-30-040(r)	
Retail Sale of Goods											M	A											A		A	M	§4-30-040(v)	
	Vehicle and Equipment Uses																											
Automobile Parking Lot, Commercial											M											S	S	M	S			
Automobile												S										A	S				§4-30-040(c)	

TABLE 4-1: Permitted Uses	Intended for Rural Areas													Intended for Urban Areas												Eith		
	Rural Districts													Urban / Suburban Residential District								Business & Special Purpose				V	L	P
Use Category/ Use Type	R S - G	R R S - 6 0	R S - 1 6 35	R S - 1 35	LI R - 1 35	T R- 1	T R- 2	R S - 30 & 20	A R - 10	A R - 2	S K I - R E C	B - 1	R - 30	R - 15 & 15 A 15 B	R - 6	V R	M H P	A H	R M F	A H - P U D	B - 2	V C	P - I	T		Use-Specific Regulations §		
Service Station																												
Vehicle and Aircraft Sales and Service																					S		M					
	Other Principal Uses																											
Wireless Communication Facility	A	A	A	A	A	A	A	A	A	A	M	A	A	A	A	A	A	A	A	A	A	A	A	A	S	M	§4-30-040(g)	
Junk Yard								S	S												S						§4-30-040(m)	
Radio or TV Transmitting Station	S		S	S	S			S	S	S	M	S	S	S	S	S	S	S		S	S	S	M				§4-30-040(r)	
Use by Federal Permit	S	S	S	S	S			S	S	S	M	S	S	S	S	S	S	S		S	S	S	M	S	M			
Accessory & Temporary Uses																												
Accessory Structures with Bathing Facility			A	A	A			A	A																		§4-30-050(a)	
Agricultural Stand			A	A	A			A	A	A	M	A	A	A	A	A					A	A	M	A	M		§4-30-050(b)	
Agricultural Buildings			A	A	S			A	A	A			A	A	A	A	A	A		A				A	M		§4-30-050(c)	
Arts and Crafts Studio, Accessory		A	A	A	A	A	A	A	A	A		A	A	A	A	A	A	A		A	A	A	M	A	M			
Wireless Communication Facility	A	A	A	A	A	A	A	A	A	A	S	A	A	A	A	A	A	A	A	A	A	A		S	M		§4-30-050(g)	
Bus Stop			A	A	A			A	A	A	A	S	A	A	A	A	A	A	A	A	A	A	A	A	A	M		
Camping Area			A	A				A															M		M		§4-30-050(e)	
Caretaker Dwelling Unit			S	S	S			S	S	S			S	S	S	S					S	S	M	S	M		§4-30-050(f)	
Club House or Recreational Building			S	S				S	S	S	M		S	S	S	S		S		S				M	M			

TABLE 4-1: Permitted Uses	Intended for Rural Areas													Intended for Urban Areas										Eith			
	Rural Districts													Urban / Suburban Residential District								Business & Special Purpose		VLP			
Use Category/ Use Type	R S - G	R R S - 6 0	R S - 35	R S - 35	LI R - 35	T R- 1	T R- 2	R S - 30 & 20	A R - 10	A R - 2	S K I - R E C	B - 1	R - 30	R - 15 & 15 A 15 B	R - 6	V R	M H P	A H	R M F	A H - P U D	B - 2	V C	P - I	T		Use-Specific Regulations §	
Day Care Home			A	A				A	A	A	M		A	A	A	A	A	A		A	A	A		A	M		
Employee Dwelling Unit			S	S				S	S	S		S	S	S	S						S		M	S	M		
Home Occupation		A	A	A	A	A	A	A	A	A		A	A	A	A	A	A	A	A	A	A	A	M	A	M	§4-30-050(g)	
Horse Boarding, Accessory	A		A	A				A	S																		
Satellite Reception Device		S	A	A	A	S	S	A	A	A	M	A	A	A	A	A	A	A		A	A	A	M	A	M	§4-30-050(h)	
Temporary Land Use and Activities	A	A		A	A	A	A	A	A	A	M	A	A	A	A	A	A	A	A	A	A	A	M	A	M	§4-30-050(b)	
Trail	A	A	A	A	A	A	A	A	A	A	M	A	A	A	A	A	A	A	A	A	A	A	M	A	M		
Water Crossing or Diversion	S	S	S	S	S	S	S	S	S	S	M	S	S	S	S	S	S	S	S	S	S	S	M	S	M		
Snow Storage/Dumping Trucking	S		S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	M	§4-30-050(m)	
**Special Events	A	A	A	A	A	A	A	A	A	A	M	A	A	A	A	A	A	A		A	A	A	M	A	M	§4-30-050(j)	
Special Events Venue								S	S		M	S									S	S	M	S	M	§4-30-050(k)	
Renewable Uses																											
Energy Storage	A	A	A	A	A	A	A	A	A	A	M	A	A	A	A	A	A	A	A	A	A	A	M	A	M	§4-30-060(b)	
Roof Mounted Solar Energy Collectors	A	A	A	A	A	A	A	A	A	A	M	A	A	A	A	A	A	A	A	A	A	A	M	A	M	§4-30-060(d)(2)	
Round-Mounted Solar Energy Collectors under 1/10 of an Acre	A	A	A	A	A	A	A	A	A	A	M	A	A	A	A	A	A	A	A	A	A	A	M	A	M	§4-30-060(d)(3)	
Round –Mounted Solar Energy collectors over 1/10 of an Acre	A		A	A	A	A	A	A	A	A	M	A	A	A	A	A	A	A	A	A	A	A	M	A	M	§4-30-060(d)(3)	

TABLE 4-1: Permitted Uses	Intended for Rural Areas													Intended for Urban Areas										Eit her			
	Rural Districts													Urban / Suburban Residential District								Business & Special Purpose				V L P	
Use Category/ Use Type	R S - G	R R	R S - 1 6 0	R S - 35	LI R - 35	T R - 1	T R - 2	R S - 30 & 20	A R - 10	A R - 2	S K I - R E C	B - 1	R - 30	R - 15 & 15 A 15 B	R - 6	V R	M H P	A H	R M F	A H - P U D	B - 2	V C	P - I	T		Use-Specific Regulations §	
Round-Mounted Solar Energy Collectors over 1/7 of an Acre	A		A	A	A	A	A	A	A	A	M	A	A	A	A	A	A	A		A	A	A	M	A	M		§4-30-060(d)(3)
Solar Farm	S		S	S	S	S	S	S	S	S	M	S	S	S	S	S	S	S		S	S	S	M	S	M		§4-30-060(e)
Solar Facility			S	S	S			S	S	S	S	S	S	S	S	S	S	S		S	S	S	S	S	S		§4-30-060(f)
Wellness Center																									M		
Wind Powered Energy Generator	A	A	A	A	A	A	A	A	A	A	M	A	A	A	A	A	A	A	M	A	A	A	M	A			§4-30-060(g)
Micro Hydro Electric Energy System	S	S	S	S	S	S	S	S	S	S	M	S	S	S	S	S	S	S	S	S	S	S	M	S	M		§4-30-060(h)
Helicopter and Fixed Wing Aircraft Loading and Unloading																											

***“Note 1: New Free Market Duplex Dwelling Units, Mobile Homes and Multi-Family Dwelling Units are prohibited within the VCLS Overlay District after January 10, 2025 in accordance with the recommendations of The Valleys of Capitol Creek and Lower Snowmass Creek Master Plan (adopted May 2, 2023).”**

**** “Note 2: Special Events Venues are prohibited within the VCLS Overlay District after January 10, 2025 in accordance with the recommendations of The Valleys of Capitol Creek and Lower Snowmass Creek Master Plan (adopted May 2, 2023).”**

(Code repealed and reenacted (all sections) by Ord. 014-D, 2006, 07-05-08; § 4-20 - Table 4-1 (part) amended [Ord. 012-08, 04-09-08](#); [Ord. 019-2009, 06-24-09](#); [Ord. 025-09, 10-14-09](#); [Ord. 010-11, 08-10-11](#); [Ord. 011-11, 08-10-11](#); [Ord. 029-2012, 10-24-12](#); [Ord. 008-2014, 04-23-14](#); [Ord.006-15, 02-25-15](#); [Ord. 037-18, 08-22-18](#); [Ord. 040-2019, 11-20-2019](#); [Ord. 026-2006, 09-13-2006](#); [Ord. 031-2013, 12-18-2013](#); [Ord. 044-2025, 12-03-2025](#)

4-30: USE-SPECIFIC STANDARDS

All uses by right, special review uses, accessory uses, and temporary uses shall comply with the following use-specific standards.

4-30-10: RESIDENTIAL

(a) Duplex Dwelling Unit

- (1) In the SKI-REC zone district, after the 5th of July, 2006, duplex units must be Category affordable housing units or resident-occupied units, as defined by the employee housing guidelines.
- (2) Duplexes are not allowed in the R-15 and R-15B zone districts. In the R-15A zone district, only lawfully established duplex units existing prior to 1974 that have been continually so used since that date are allowed, subject to the area and bulk requirements in Table 5-1.B. New duplex units are prohibited in the R-15A zone district.
- (3) In the T and P-I zone districts, duplex dwelling units shall only be permitted within urban growth boundaries.
- (4) Duplex dwelling units that are condominiums shall be subject to all of the provisions of Sec. 4-30-40(x) relating to common interest communities; but shall not be subject to the provisions of Table 4-1 limiting the location of timesharing and fractional fee units and communities.

(b) Group Home

Each group home shall remain in compliance with all local, state, and federal health, safety, and fire code provisions at all times.

Each group home that is required to be licensed by the State of Colorado shall obtain a license prior to beginning operation, and shall maintain the license in good standing at all times.

(c) Mobile Home

Mobile homes existing in the unincorporated areas of the county on the 5th of July, 2006 may continue to be occupied as a dwelling unit in its current location.

However, no such dwelling unit may be installed in a new location in the County after the 5th of July, 2006, and no mobile home that is not currently located in Pitkin County may be installed in the County after the 5th of July, 2006.

(d) Multi-Family Dwelling Unit

(1) In the SKI-REC zone district, after the 5th of July, 2006, multi-family dwelling units must be Category affordable housing units or resident-occupied units, as defined by the employee housing guidelines.

(2) In the T and P-I zone districts, multi-family residential uses shall only be permitted within urban growth boundaries.

(3) Multi-family dwelling units that are condominiums shall be subject to all of the provisions of Sec. 4-30-40(x) relating to common interest communities; but shall not be subject to the provisions of Table 4-1 limiting the location of timesharing and fractional fee units and communities.

(4) In the B-1 zone district, multi-family uses are only permitted above the ground floor and only within structures where the ground floor use is a non-residential use permitted by right or by special review.

(e) Nursing, Convalescent, Rest, or Retirement Home

(1) Nursing, convalescent, rest, or retirement homes with a capacity of more than five (5) guest bedrooms shall be permitted only within the urban growth boundaries.

(2) Nursing, convalescent, rest, or retirement homes shall not exceed fifteen thousand (15,000) square feet of floor area.

(3) Nursing, convalescent, rest, or retirement homes are permitted by special review in R-15 zone district, but are not permitted either by right or by special review in the R-15A zone district.

(4) In the P-I zone district, nursing, convalescent, rest, or retirement homes shall only be permitted within the urban growth boundaries.

In the AR-10 zone district, only nursing, convalescent, rest, or retirement homes in operation on or before the 5th of July, 2006 are permitted. Such facilities may not be expanded or relocated to other sites within the AR-10 zone district after the 5th of July, 2006.

(f) Single Family Dwelling

(1) All single family dwelling units are subject to those restrictions on size contained in Chapter 5.

(2) In the AH zone district, single family dwelling units must be Category deed restricted units, as defined by the employee housing guidelines. No other types of single family dwelling units are permitted by special review.

(3) In the SKI-REC zone district, single family dwelling units must be Category affordable housing units or resident-occupied units, as defined by the employee housing guidelines.

(4) Single family dwelling units that are condominiums shall be subject to all of the provisions of Sec. 4-30-40(x) relating to common interest communities; but shall not be subject to the provisions of Table 4-1 limiting the location of timesharing and fractional fee units and communities.

4-30-20: AGRICULTURAL AND RESOURCE

(a) Agricultural Building

(1) Agricultural buildings are subject to floor area limitations pursuant to Sec. 5-20-70(i)

(2) In the RS-160, RS-35, LIR-35, RS-30, RS-20, AR-10, AR-2, R-30 and T zone districts, a greenhouse(s) that contains 3,000 square feet or more and is not customarily accessory to a principal residential use is permitted on lots/parcels of five (5) acres or more, subject to Special Review pursuant to Sec. 2-30-30(h)(2). Retail sales of agricultural products are only allowed from an Agricultural Stand as specified in Sec. 4-30-50(b).

(b) Farming

(1) In the RR zone district, agricultural operations and practices are limited to those that were in existence prior to the property being zoned to Rural/Remote.

(2) In the LIR-35 zone district, uses by right are limited to (a) farming or ranching conducted for the primary purpose of obtaining a monetary profit, and (b) single family dwelling unit and associated accessory structures and uses that may be accompanied by farming or ranching not conducted for the primary purpose of obtaining monetary profit.

(3) Industrial hemp cultivation is a special review use in the AR-10, RS-20, RS-30, LIR-35, RS-35, RR and RS-160 zone districts. Hemp cultivation is prohibited in all other zone districts.

(c) Firewood Splitting, Commercial

(1) Firewood splitting and related storage must comply with all setback requirements of the underlying zone district.

(2) The site must be kept orderly and free of all unrelated machinery or discarded trash and junk.

(3) On-site sales are limited to sales of block or slabwood and post-season clearance sales.

(4) The site shall be limited to one (1) acre or less.

(d) Horse Boarding

A horse boarding facility shall be limited to ten (10) visitor trips per day relating to the horse boarding operation.

(e) Kennel and/or Veterinary Clinic

Outdoor dog runs or animal pens are only permitted by special review, and shall only be approved if adverse noise and odor impacts on nearby properties can be avoided or mitigated.

(f) Logging

(1) Intent

The intent of these logging standards is to manage the removal, damage or destruction of trees on individual properties in the County in order to preserve scenic resources, to maintain air and water quality and to protect wildlife habitats for the continued health, safety and welfare of the people of Pitkin County.

(2) Applicability

Development permits are required and may be approved, approved with conditions, or denied for:

(a) All logging operations (including the harvest of firewood or logs for commercial sale);

(b) Removing, damaging or destroying more than forty (40) trees or similar woody vegetation with a Diameter-Breast-Height (D.B.H.) of six (6) inches or more on a single property;

(c) Removing, damaging or destroying thirty (30) percent or more of the trees with a D.B.H. of six (6) inches or greater on a single property.

(3) Prohibited Activities

(a) Removing, damaging or destroying trees or other vegetation within one hundred (100) feet of the ordinary high water mark on any stream or within wetlands or riparian habitat is prohibited unless approved by Pitkin County pursuant to other sections of this Land Use Code.

(b) Removing, damaging or destroying trees or other vegetation within elk calving habitat is prohibited.

(4) Exemptions

The following logging activities are exempt from County review:

(a) Removing, damaging or destroying trees with a D.B.H. of less than six (6) inches, provided the trees are not located within a wetland or riparian area.

(b) Removing, damaging or destroying forty (40) trees or less with a D.B.H. of less than six (6) inches on a parcel of land, or removing, damaging or destroying of less than thirty (30) percent of the trees or similar woody vegetation on a parcel of land, whichever is less.

(c) The selective removal or trimming of dead, diseased or damaged trees or other woody vegetation that constitute a significant and direct hazard to persons or property, provided that the removal is accomplished through the use of standard forestry practices and techniques.

(d) Prior to vegetation removal under this provision, the applicant must present to the Community Development Department written confirmation from a certified arborist or recognized tree/forestry expert documenting the condition of the tree/vegetation and the hazard created if removal does not take place. This requirement can be waived pursuant to section 7-20-10(b). The applicant is required to properly dispose of dead or diseased trees in accordance with the Land Management Department's policy. Dead or diseased trees that are removed as a result of the Mountain Pine Beetle shall not be stored for firewood.

(e) Clear cutting of areas larger than five thousand (5,000) square feet shall not be permitted, unless requested or approved in writing by a state or federal government agency in order to avoid or mitigate a public health or safety hazard.

(f) Actions taken in times of emergency, including the repair or restoration of public roads, electrical lines, natural gas lines, water

lines, sewage lines, and storm drainage systems, when immediate action is necessary to protect public health or safety or to prevent damage to property.

(g) Removal of trees or other vegetation that has either been approved or required pursuant to a development approval granted by the County.

(5) Federal and State Pre-emption

Standards in this section shall apply to any logging activities on any lands within the County, except to the extent that any specific regulation is preempted by Federal or State law. In determining whether Federal or State law preempts enforcement of these requirements, the Board of County Commissioners shall be guided by the factors in this section:

(a) County regulation of logging activities shall be preempted where Federal or State law specifically and explicitly precludes local regulation.

(b) The Board may require a County development permit to be obtained for federally approved activities, including unpatented mining claims on Federal lands, provided the purpose of the review is to impose conditions for the protection of the public health, safety and welfare and the environment.

(c) Patented lands shall be treated as any other private property. Logging and tree removal on private lands shall be subject to the use limitations imposed by this Land Use Code without regard to Federal preemption.

(d) Where logging activities are approved by the Board of County Commissioners, reasonable conditions may be imposed on such activities for the protection of the public health, safety, welfare and the environment.

(6) Site Selection

Sites selected for logging activities shall comply with the standards in this section. An applicant for a development permit will produce sufficient and substantial evidence that the proposed operation will not:

(a) Occur within one hundred (100) feet of a public road;

(b) Occur within one thousand (1,000) feet of any urban/suburban zone district or any business or special purpose zone district.

- (c) Occur within one hundred (100) feet of a stream, river, lake or water impoundment;
- (d) Occur within one thousand (1,000) feet of any public park, publicly owned building, national wilderness area or other public institution, places having unique historic interest or value unless the owner of the site or governmental body having jurisdiction over the site has consented to the logging operation;
- (e) Substantially injure or detract from the lawful existing or permitted uses of neighboring properties;
- (f) Adversely affect any public land used for a public purpose; and
- (g) In the P-I zone district, logging shall only be permitted outside urban growth boundaries.

The Board of County Commissioners may reduce the above requirements upon their finding that a lesser distance will result in substantially the same or less impact due to unique site features or the nature of the equipment that will be utilized.

(7) Environmental Protection

Logging activities shall comply with the standards in this section.

- (a) Operations must conform with the forestry management plan for the subject area prepared by a licensed forester and approved by the County. The County may refer the management plan to the Colorado State Forest Service and other agencies for review and comment.
- (b) Operations must conform to state and local pollution regulations. Permittees shall maintain public and private haulage roads in a reasonable dust-free condition.
- (c) Disruption of natural vegetation within one-hundred (100) feet of a water course or riparian area is prohibited.
- (e) Damage to any public, private, residential or agricultural water supply source is prohibited.
- (f) Adverse impacts to any environmental system such as aquifers, landslide or avalanche prone areas, floodplains, riparian areas, or wildlife habitat of significance to the County, region or nation is prohibited.

(8) Operations

This section contains general operational standards applicable to logging activities.

- (a) Logging shall not be permitted closer than ten (10) feet to the boundary of an adjacent property, easement, irrigation ditch or right-of-way, or the established zone district setbacks in which the operation is located, whichever distance is greater. The Board of County Commissioners may require a greater distance, when justified.
- (b) Equipment shall be located to minimize nuisance effects such as visual, noise and dust.
- (c) Hours of operation, unless otherwise specified, shall be from 7:00 a.m. to 7:00 p.m., unless special permission is granted by the Board of County Commissioners.
- (d) Material, equipment, machinery, or vehicles not intended for immediate use or servicing of the logging activity shall not be stored on site.
- (e) Logging sites and all permanent installations shall be maintained in a neat, clean and orderly condition.
- (f) Operations may be limited to certain operating hours and time of year to protect wildlife.

(9) Regeneration Plans

Applicants for logging development permits shall prepare a regeneration plan for review and approval by the Board of County Commissioners. The finished, final condition of the logged area shall be in accordance with the approved plan. If, because of a change of conditions, a permittee may request an amendment to the regeneration plan. The amended plan shall be subject to approval by the Board of County Commissioners. All regeneration plans shall provide that all rehabilitated or disturbed areas shall be reestablished with appropriate tree and ground cover vegetation. The revegetation program shall consist of the following:

- (a) A certified tree count shall be submitted by a landscape architect, surveyor or engineer registered in the State of Colorado. The tree count shall include all on-site trees. The number of existing trees shall then be divided by the total number of acres to obtain a trees-per-acre figure. The number of replacement trees to be planted at the time of

rehabilitation shall be determined by multiplying the trees-per-acre figure by the number of land acres to be rehabilitated.

(b) Replacement trees shall be a minimum of two (2) feet in height immediately after planting. Species and general location of the replacement trees shall be reviewed by the Board of County Commissioners based upon staff recommendations taking into account future use of land, and the physical and chemical properties of soil. All disturbed surface areas shall be planted or seeded with appropriate ground cover to prevent erosion. The survival ratio of the replacement trees after two (2) years shall be no less than ninety (90) percent before the remainder of the non-expiring bond is released pursuant to subsection (12) below.

(10) Permitting and Inspections

An annual inspection shall be performed by a representative of the Community Development Department to assess compliance with the approved operating plan. The applicant shall pay a fee for this inspection prior to January 1st of each year. The amount of the fee will be based on the number of hours required to make the inspection and will be based on the normal hourly billing rate for Community Development Department review activities.

(11) Insurance

The permittee shall furnish evidence of insurance, to the extent determined by the Board of County Commissioners, against liability for any negligent act or omission by the operator from the operation and all activities connected with or incidental thereto.

(12) Performance Bond

The parties to the permit shall post a performance bond or other security acceptable to the County, payable to Pitkin County, in a sum acceptable to the Board of County Commissioners, to ensure full compliance with all of the terms and conditions of the permit and the rules and regulations of the Board of County Commissioners pertaining to exploration or mining, and the rules and regulations pertaining to site rehabilitation. The Board of County Commissioners, upon determining that a logged area complies with all the terms and conditions of the permit, may release such acreage from coverage by the performance bond.

(13) Initiation of Logging

Permitted logging or tree removal shall begin within twelve (12) months following the date of approval of the development permit, or the approval shall be null and void.

(g) Mineral and Gravel Extraction

(1) Applicability

Mineral exploration and mining is only permitted pursuant to the standards of this Sec. 4-30-20(g). Development applications for special review approval for mineral exploration, mining sand and gravel pits, rock crushers, concrete batch plants, asphalt hot mix plants, surface mining, open pit mining and subsurface mining may be denied, approved or approved with conditions subject to the standards in this section.

(2) Exemptions

The following mineral exploration and mining activities are exempt from County review, pursuant to this Sec. 4-30-20(g), but are still subject to the other standards of this Land Use Code.

(a) Gravel excavation by a property owner of fifty (50) cubic yards or less for non-commercial purposes.

(b) Mineral exploration limited to non-motorized hand tools with no new or improved access for motorized vehicles and less than fifty (50) cubic yards of excavation or fill. Examples of these exempt activities include hand-panning or collecting of rock or ore samples using non-motorized hand tools such as picks or hammers.

(c) Underground mineral exploration that results in no surface disturbance. This includes underground drilling, excavation or maintenance undertaken as part of an existing underground operation.

(d) Mapping activities that do not require the use of explosives, motor vehicles or other surface disturbance.

(e) Excavation and reclamation of existing unreclaimed tailings or spoils dumps that exceed fifty (50) cubic yards may be approved through the issuance of a County earthmoving permit.

(3) Federal and State Pre-emption

The standards in this section and the requirements of Sec. 2-40-20(d) shall apply to any and all mineral exploration and mining activities on all lands within the County, except to the extent that any specific regulation is preempted by Federal or State law. In making a determination whether Federal or State law preempts enforcement of these requirements, the Board of County Commissioners shall be guided by the factors in this section.

(a) The Board may require a County development permit to be obtained for federally approved activities on Federal lands, including unpatented mining claims, provided the purpose of the review is to impose conditions for the protection of the public health, safety, welfare and the environment.

(b) Patented lands are to be treated as any other private property and are not subject to the preemption of Federal mining laws. Mining on private lands shall be subject to the use limitations imposed by this Land Use Code without regard to Federal preemption.

(c) Where mineral exploration or mining activities are approved by the Board of County Commissioners, reasonable conditions may be imposed on such activities for the protection of the public health, safety, welfare and the environment.

(4) Site Selection

Sites selected for mineral exploration, mining, sand and gravel pits, rock crushers, surface mining, open pit mining and subsurface mining shall comply with the standards in this section. Concrete batch plants and asphalt hot-mix plants may only be located and operated at the sites of sand and gravel pits and rock crushers, but may temporarily be located in conjunction with major construction sites if special review approval is granted. An applicant for a development permit will produce sufficient and substantial evidence that the proposed operation will not:

(a) Occur within two hundred (200) feet of a public road;

(b) Occur within two hundred (200) feet of a stream, river, lake or water impoundment;

(c) Occur within one thousand (1,000) feet of any public park, publicly owned building, national wilderness area or other public institution, places having unique historic or patriotic interest or value unless the owner of the site or the governmental body having jurisdiction over the site has consented to the mining operation;

(d) Substantially injure or detract from the lawfully existing or permitted uses of neighboring properties;

(e) Adversely affect any public land use;

(f) Occur within one thousand (1,000) feet of any occupied dwelling, unless the consent of the owner of the dwelling has been obtained in advance of the submission of application for development permit;

- (g) Occur within one thousand (1,000) feet of any school, church, community or institutional building;
- (h) Occur within one thousand (1,000) feet of a cemetery; and
- (i) In the P-I zone district, mineral and gravel extraction shall only be permitted outside urban growth boundaries.

The Board of County Commissioners may reduce the above requirements upon their finding that a lesser distance will result in substantially the same or less impact due to unique site features or the nature of the equipment that will be utilized.

(5) Environmental Protection

Mineral exploration, mining, sand and gravel pits, rock crushers, concrete batch plants and asphalt hot-mix plants, surface mining, open pit mining and subsurface mining shall comply with the standards in this section.

- (a) Damage or nuisance resulting from noise, smoke, odor, dust, vibration or erosion is prohibited.
- (b) Dust produced by mechanical operation, trucking or road conditions must be controlled.
- (c) Permittees shall maintain private and public roads in a reasonable dust-free condition.
- (d) Landscaping or appropriate visible barriers may be required to screen the operations from the general public.
- (e) Disruption of natural vegetation within two hundred (200) feet of a water course or riparian area is prohibited, unless the Board approves a lesser distance upon a finding that no adverse impacts will result.
- (f) Damage to any public, private, residential, or agricultural water supply source is prohibited.
- (g) Adverse impacts to any environmental system such as aquifers, landslide or avalanche prone areas, floodplains, riparian areas, or wildlife habitat of significance to the County, region, or nation is prohibited.
- (h) Toxic wastes shall be disposed of pursuant to an approved toxic waste disposal plan approved by the County.

(6) Operations

This section contains general operational standards applicable to mineral exploration, mining, sand and gravel pits, rock crushers, concrete batch plants and asphalt hot-mix plants, surface mining, open pit mining and subsurface and specific operational standards for sand and gravel pits, rock crushers, concrete batch plants and asphalt hot-mix plants; and oil and gas drilling.

(a) General Operational Standards

The general operational standards in this section apply to Mineral exploration, sand and gravel pits, rock crushers, concrete batch plants and asphalt hot-mix plants, oil and gas drilling, surface mining, open pit mining and subsurface mining.

(1) Excavation shall not be permitted closer than ten (10) feet to the boundary of an adjacent property, easement, irrigation ditch or right-of-way. The Board may require a greater distance, when justified.

(2) Equipment shall be located to minimize nuisance effects such as noise and dust.

Hours of operation, unless otherwise specified, shall be from 7:00 a.m. to 7:00 p.m., unless special permission is granted by the Board.

(3) Operations may be required to be fenced, or otherwise enclosed for health and safety protection.

(4) Sound levels must comply with Pitkin County Noise Standards or other specific standards as may be approved by the Board for a specific development.

(5) Material, equipment, machinery, or vehicles, not intended for immediate use or servicing of the exploration or mining site shall not be stored on site.

(6) Exploration or mining sites and all permanent installations shall be maintained in a neat, clean and orderly condition.

(7) All surfaces of permanent buildings and structures shall be painted and maintained in a neat and orderly manner.

(8) Operations may be limited to certain seasons and time of day to protect wildlife.

(b) Additional Standards for Sand and Gravel Pits, Rock Crushers, Concrete Batch Plants and Asphalt Hot-mix Plant Operations

In addition to the general operational standards in subsection (a) above, sand and gravel pits, rock crushers, concrete batch plants and asphalt hot-mix plants are required to comply with the operational standards in this section.

(1) All sand and gravel pits shall be excavated in such a manner as to leave an average of not less than two (2) feet of undisturbed sand or gravel, as evenly as possible over the entire excavation tract, to provide a water bearing strata for any existing ground water, unless the rehabilitation plan provides for a permanent lake or other appropriate reconstruction.

(2) In no event shall slopes steeper than 2:1 be left when operations are completed, unless the approved rehabilitation plan calls for other types of stabilized slopes.

(3) Pit floors shall be graded in reasonable, smooth condition so that excavated areas will not collect water or permit polluted water to remain therein; however, where the rehabilitation plan for the subject property, as approved by the Board, provides for a permanent lake, the foregoing requirements shall not apply.

(7) Rehabilitation, General

Applicants for mineral exploration, mining, sand and gravel pits, rock crushers, concrete batch plants, asphalt hot mix plants, surface mining, open pit mining and subsurface mining permits must prepare a rehabilitation plan for review and approval by the Board of County Commissioners and State or Federal agencies, if applicable. The finished, final condition of the explored or mined area shall be in accordance with the approved plan; or, since conditions of material or economics may change, a permittee may request an amendment to the rehabilitation plan. The amended plan shall be subject to County Commissioner approval. Reclamation plans shall comply with the general rehabilitation plan standards in subsection (8) below. In addition to complying with the general rehabilitation standards in subsection (8) below, sand and gravel operations rehabilitation plans must comply with the specific rehabilitation standards in subsection (9) below.

(8) General Rehabilitation Plan

Rehabilitation plans for mineral exploration, sand and gravel pits, rock crushers, concrete batch plants, asphalt hot mix plants, surface mining, open

pit mining and subsurface mining shall comply with the standards in this section.

(a) Existing topsoil shall be quality tested, stored and redistributed on-site to provide adequate growing conditions for revegetation. Where such storage is not feasible, the area shall be restored with soil of an equal or better quality to previously existing topsoil and be redistributed to provide adequate growing conditions.

(b) Toxic wastes remaining on site, if any, shall be covered or disposed of in a manner acceptable to the Environmental Protection Agency.

(c) All rehabilitated or disturbed areas shall be reestablished with appropriate tree and ground cover vegetation. The revegetation program shall consist of the following:

(1) A certified tree count shall be submitted by a landscape architect, surveyor or engineer who is registered in the State of Colorado. The tree count shall include all existing on-site trees with a diameter-breast-height (D.B.H.) of four (4) inches or greater. The number of existing trees meeting this standard shall then be divided by the total number of acres to obtain a trees-per-acre figure. The number of replacement trees to be planted at the time of rehabilitation shall be determined by multiplying the trees per acre figure by the number of rehabilitated land acres.

(2) Replacement trees may be required in specific areas to mitigate visual impacts, provide buffer areas, to prevent erosion, or for other specific purpose. Large areas over an acre may be planted with seedlings or other approved foliage. Replacement trees shall be a minimum of (2) inch caliper at diameter-breast-height for deciduous trees or four (4) feet in height for evergreens. Species number and location of the replacement trees shall be reviewed by the Board of County Commissioners based upon staff recommendations taking into account the future use of land and the physical and chemical properties of soil. [Slightly revised for clarity]

(3) Credit shall be given for existing trees greater than six (6) inches at diameter-breast-height that are relocated or adequately protected during excavation. Any tree so relocated or protected shall be deducted from the replacement tree count standards.

- (d) All disturbed surface areas shall be planted or seeded with appropriate ground cover to prevent erosion.
- (e) The survival ratio of the replacement trees shall be no less than ninety (90) percent of the required number of replacement trees before the remainder of the non-expiring bond is released pursuant to subsection (12) below.
- (f) No pits, tailings, depressions or debris accumulation shall remain after rehabilitation. Final grades shall conform to the contour lines and grades approved on the site rehabilitation plan.

(9) Special Standards for Sand and Gravel Operation Rehabilitation Plans

In addition to complying with the general rehabilitation standards in subsection (8) above, sand and gravel operation rehabilitation plans must comply with the special rehabilitation standards in this section.

(a) Dry Pit Rehabilitation

(1) After sand and gravel excavation has been completed in a dry pit, the permittee shall spread fill evenly over the bottom of the excavation and excess waste materials. The permittee shall then evenly spread topsoil to a minimum depth of eighteen (18) inches, unless evidence shows that the land excavated had less than eighteen (18) inches of topsoil prior to commencement of operations. The topsoil shall be spread so as to produce a new surface for the purpose of growing crops or other vegetation.

(2) The graded or backfill area shall not permit water to collect or remain therein unless approved as part of the rehabilitation plan.

(b) Wet Pit Rehabilitation

Like dry pit rehabilitation, the wet pit must be filled. Filling must be accomplished in accordance with the conditions set for recreational or scenic purposes. The following standards apply to rehabilitation of a wet pit into a lake:

(1) All banks shall be sloped to the water line; a slope that shall not be steeper than two (2) feet horizontal to one (1) foot vertical.

(2) All banks shall be stabilized unless otherwise called for on the approved rehabilitation plan.

(3) Stabilization shall be accomplished by surfacing with soil of a quality at least equal to the topsoil of land areas immediately surrounding.

(4) Topsoil, as required by subsection 3. above, shall be planted with trees, shrubs, legumes, or grasses upon the parts of such area where revegetation is possible, unless otherwise specified in the rehabilitation plan.

(10) Permitting and Inspections

An annual inspection shall be performed by a representative of the Community Development Department to assess compliance with the approved operating plan. The applicant shall pay a fee for this inspection prior to January 1st of each year. The amount of the fee will be based on the number of hours required to make the inspection and will be based on the normal hourly billing rate for Community Development Department review activities.

(11) Insurance

The permittee shall furnish evidence of insurance, to the extent determined by the Board of County Commissioners, against liability for any negligent act or omission by the operator from the operation and all activities connected with or incidental thereto.

(12) Performance Bond

The parties to the permit shall post a performance bond or other security acceptable to the County, payable to Pitkin County, for a sum acceptable to the Board to ensure full compliance with all of the terms and conditions of the permit and the rules and regulations of the Board pertaining to exploration or mining, and those rules and regulations pertaining to site rehabilitation. The Board of County Commissioners, upon determining that an explored or mined area complies with all the terms and conditions of the permit, may release such acreage from coverage by the performance bond.

(13) Conversion of Initial, Short-term Permit to Long-term Permit

The Board shall consider the degree to which the permittee has complied with all of the terms and special conditions of the initial, short-term permit, citizen comments and changing conditions that may affect the exploration or mining operation.

(14) Initiation of Exploration or Mining

Permitted exploration or mining operations shall begin within twelve (12) months following the date of approval of the development permit, or the approval shall be null and void.

(15) SKI-REC Zone District

Standards for mineral exploration, mining or uses and activities not under the control of ski area operator:

(a) Mineral exploration and mining shall be subject only to the procedures of Sec. 2-40-20(d), and standards of this Sec. 4-30-20.

(b) If the right to the use of property located within the boundaries of the SKI-REC zone district comes under the control of a person other than the proponent of a master plan required under this section, and where such person is unsuccessful after reasonable efforts in securing approval with the master plan review process, such person may apply for review and approval of such proposed development as if the property were located in the AR-10 zone district, and in accordance with the procedures, submission contents and standards applicable thereto.

(h) Oil and Gas Extraction

(1) Introduction

(a) The Board of County Commissioners' decision to approve, conditionally approve, or deny an application for an oil or gas facility/operation in the County shall be made and determined based upon the compliance of the applicant with the following performance standards, to the extent applicable and relevant, and not waived based upon technical infeasibility. The burden shall be on the applicant to meet these standards to the satisfaction of the Board.

(b) Any proposed oil and gas facility/operation, excluding well sites, must be compatible with existing uses and those, which can be projected in the area in which the oil and gas facility is proposed. A facility's compatibility with land uses in the surrounding area, which the Board finds will be affected by its operation, shall be determined by the operator's ability to mitigate the impacts which it generates, as set forth in the facility operation plan, and in accordance with applicable county, state and federal rules, regulations and standards. Compatibility does not necessarily mean that a proposed use must be identical with neighboring uses.

(c) The Board understands that based upon state and federal law, there are areas in which it does not have the legal right to establish and enforce performance standards, primarily where those standards are duplicative of state or federal regulations. In those cases, to require compliance with the standards does not presume the right of Pitkin County to enforce state or federal regulations, or County regulations which duplicate those of the federal or state government.

(2) Oil and Gas Wells and Well Sites

The following performance standards apply to the siting, construction and operation of oil and gas wells within the County.

(a) Access by Pitkin County Local Government Designee

The Pitkin County Local Government Designee (LGD) shall have access to an oil and gas facility/operation for the purpose of determining compliance with these conditions. The Local Government Designee shall comply with all safety requirements and shall preserve the confidentiality of any proprietary information which becomes known to him. Pitkin County shall also comply with confidentiality requirements, as defined and to the extent stated in the Colorado Oil and Gas Conservation Commission rules and regulations.

(b) Emergency Response Requirements

(1) Each operator with oil and gas facilities/operations in the County is required to provide an emergency response plan. The plan shall be filed with the County and updated on an annual basis or as conditions change (responsible field personnel change, ownership changes, etc.). The emergency plan shall consist of the following information, as a minimum:

(a) Name, address and telephone number, including a 24-hour emergency number of at least two (2) persons responsible for emergency field operations.

(b) An as-built facilities map showing the name, location, and description of all oil and gas facilities, including the size and type of all pipelines and isolation valves (note: isolation valves shall not be operated by anyone except the owner of the pipeline). The map shall be prepared either manually on U.S.G.S. 7.5 Minute Series maps (1"=2000'), or digitally on the County Geographic Information System Parcel Maps, if available. The as-built facilities map which includes the

information regarding the location of isolation valves shall be held confidentially by the County's Emergency Management Staff and shall only be disclosed in the event of an emergency. The County's Emergency Management Staff shall deny the right of inspection of the as-built facilities map to the public pursuant to C.R.S. 24-72-204(3)(a)(IV). An operator who is new to Pitkin County and has no facility shall supply the information in this paragraph within six (6) months of commencement of operations.

(c) Provide a written response plan for the potential emergencies that may be associated with the operation of the facilities. This may include any or all of the following: explosions, fires, gas or water pipeline leaks or ruptures, hydrogen sulfide or other toxic gas emissions, or hazardous material vehicle accidents or spills.

(d) Project specific emergency response plans are required for any project that involves drilling or penetrating through known zones of hydrogen sulfide gas, as determined by the County's Emergency Management Staff. This plan shall be coordinated with and approved by the County's Emergency Management Staff prior to beginning field operations.

(2) Oil and gas facilities shall be located and designed so as to provide access by fire or other emergency response personnel and vehicles.

(3) All storage tank batteries shall be bermed, subject to requirements placed on oil and gas facilities according to Colorado Oil and Gas Conservation Commission rules and regulations.

(4) The operator shall obtain an address from the County before beginning any work on the site other than site analysis and surveying. The well site shall be incorporated into the E911 Emergency Reporting System.

(5) The operator shall provide special training and on-site orientation at the drill site for personnel from the Fire District and/or the Pitkin County Hazardous Material Team. The operator agrees to furnish equipment (spill kit) to contain spills including drilling, completion and testing fluids on land and in water courses to the Fire District personnel and/or the Pitkin County Hazardous Material Team in the event of a truck accident, spill and/or fire.

(6) The operator shall become a member and pay any necessary fees of the applicable Ambulance Service prior to commencing operations to drill the well.

(c) Federal, State and Local Regulations

(1) All oil and gas operations shall comply with federal, state and local regulations applicable to the proposed operations. An applicant is required to obtain federal or state permit approval(s) before the County can grant final approval. The County will process such an application under the County's normal procedures and timetable, but County approval will not become effective until all requisite state and federal permits are obtained.

(2) An applicant shall inform the County of any notice of non-compliance by the appropriate authority concerning a state or federal permit within a reasonable time, not to exceed thirty (30) days from the applicant's receipt of such notice. The County may not, however, take any action with regard to a pending or existing development agreement different than the state or federal agency as a result of the alleged non-compliance with approvals issued by those agencies. The County may only suspend or revoke a development agreement as a result of a notice of non-compliance if the applicable federal or state agency has suspended or revoked its corresponding permit approval as a result of the alleged non-compliance. In the event that the County has suspended or revoked a development agreement in this circumstance, it must reinstate the development agreement when the applicable state or federal agency reinstates its corresponding permit for whatever reason.

(3) By requiring such compliance in this Land Use Code, Pitkin County does not presume any absolute right to enforce state or federal regulations.

(d) Fire Protection

(1) If the oil and gas facilities are located in a severe or low to moderate wildfire hazard area, the fire mitigation plan shall include detailed information as to fuel location, hazardous materials and proposed methods of fire suppression, including the use of foam. The operator shall comply with the recommendations (if any) of the Fire District to mitigate any fire hazards at the facilities.

(2) The operator shall comply with any state and local fire restrictions applicable to the property upon which oil and gas facilities will be located. If there is a County fire ban, no open flames should be allowed without additional approval of the Board of County Commissioners or its designee.

(3) For oil and gas facilities located outside the boundaries of a Pitkin County Fire Protection District, the operator shall agree to reimburse each Fire

District for all costs of responding to and fighting any fire and/or emergency situation requiring the presence of the Fire District.

(e) Floodplain

(1) Oil and gas facilities that are located within, or partially within, a special flood hazard area shall comply with the requirements of the Pitkin County Floodplain Regulations.

(2) No oil and gas operation shall result in the handling or storage of hazardous materials in a special flood hazard area. Any other outdoor storage permitted in a special flood hazard area shall be of materials that will not float, or that are confined by a fence or other means to prevent flotation.

(f) Impact on Agriculture

(1) Where irrigation and waste water ditches, pipelines, waterways or any other means of conveyance cross or adjoin the land proposed to be developed, adequate provisions shall be made to ensure that their use, including the maintenance thereof, will continue uninterrupted. Ditch rights of way shall be recognized and/or granted if not already established. Existing historical easements utilized to gain access to ditches, headgates and fences for maintenance shall be preserved or replaced with alternate easements suitable for a continuation of historic use. No operator shall channel storm water, produced water or snowmelt runoff into any irrigation system without the written consent of the responsible irrigation entity.

(2) Oil and gas facilities/operations shall not interfere with the irrigation of neighboring lands or alter any irrigation system without the written consent of the affected entity.

(3) Oil and gas facilities/operations shall not interfere with the normal operation of existing agricultural operations including, but not limited to, dairies, feed lots, fruit orchards, onion sheds, crop and livestock production and other agricultural activities; provided that this provision does not give Pitkin County authority over the siting or location of oil and gas wells. In particular, such facilities/operations shall not generate dust or other air pollutants that will interfere with crop and orchard pollination or growth, or negatively impact the health of livestock.

(g) Insurance and Financial/Performance Security

(1) Each operator shall maintain general liability insurance for property damage and bodily injury to third parties as required by the Colorado Oil and Gas Conservation Commission, and such policy shall include Pitkin County as

a certificate holder so that the County may receive advance notice of cancellation.

(2) In addition to the requirements of subsection (j)3. below concerning road bonds, the operator shall provide one form of the following security to assure compliance with mitigation requirements set forth in these regulations and specific conditions of approval for oil and gas facilities. Five thousand dollar (\$5,000.00) performance bond for each oil and gas facility; fifty thousand dollars (\$50,000.00) Countywide blanket bond for all facilities operated by the applicant within the County; irrevocable letter of credit; or equivalent financial security acceptable to the County.

(3) Growth shall pay its own way; therefore operators shall be required to pay their appropriate share of the impact created on public facilities and infrastructure. The share of the impact and cost shall be determined according to standards and formulas designed to estimate the cost of growth in Pitkin County.

(h) Notice/Exchange of Information

The operator shall notify the County with respect to the following events:

(1) Upon the commencement of final reclamation of each well site or upon a request for waiver of final reclamation pursuant to Section 1001.C. of the Rules of the Colorado Oil and Gas Conservation Commission.

(2) With respect to any sale, lease or other reassignment of the operating interest in the oil and gas facility/operation to another party, within thirty (30) days after the transfer.

(3) Any permits obtained by operator from federal and state agencies pursuant to their regulations, e.g., stormwater discharge permit, including copies of said permits, as well as copies of written notices of any alleged violations of federal or state law received by operator concerning oil and gas operations in Pitkin County.

(i) Off-Site Staging Area

(1) If an off-site staging area is required during the drilling, completion, and production of an oil and gas facility, the area shall be constructed and protected in the same manner as the access to the County road. Provided, however, if such staging area is accessed off a County road in a different location from the access to the oil and gas facility then an additional access permit shall be obtained prior to the use of the area. The staging area will be authorized for a period of one (1) year, but if required beyond that period, the

operator shall file an application for its continuation under the Sec. 2-20-150 at least ninety (90) days before the year expires.

(j) Roads and Access

The following requirements are applicable to roads over which Pitkin County has jurisdiction, (such as public roads, but not to private, internal roads):

- (1) Prior to commencing operations, the operator shall apply for and receive approval of a Pitkin County Access Permit and Road Use Permit for each oil and gas facility accessed off a County road.
- (2) No other haul route than the route approved by the Board of County Commissioners or its designee may be used without written consent of the Board.
- (3) The County shall determine the current condition of the County roads and if the roads will be able to handle the number and weight of proposed truck traffic. The operator shall agree to bond these designated haul routes in an amount determined necessary by the Board and return the road surfaces in equal or better condition after completion of drilling. The operator shall further comply with any regulations in place in Pitkin County which require a special use permit or a road use permit to cover the proposed operations of the operator. If Pitkin County determines the existing haul routes, or a portion thereof, are not able to handle the weight and number of truck traffic, the operator and the County will negotiate an agreement to determine the operator's share of any needed improvements.
- (4) With respect to roads over which the County may exert jurisdiction, the operator will endeavor to ensure that texture and composition of any disturbed areas will be similar to that of the surrounding undisturbed ground. Exhumed rock that cannot be backfilled will be disposed of in a manner that is compatible with the surrounding area. Any areas that may be compacted or rutted by wheeled traffic, and other areas disturbed by construction, will be re-contoured and reseeded in a manner that minimizes the possibility of erosion.
- (5) The operator will avoid scheduling heavy truck traffic on County roads between October 1 and May 1 because of muddy conditions and frost heave. Operator will seek approval from the local Road & Bridge Foreman to use the roads during this period of time. If the operator cannot avoid using County roads for heavy truck traffic during this period of time, the Board may impose additional bonding requirements to remediate anticipated road damage.
- (6) To the extent that heavy truck traffic resulting from the operations of the operator will impact residential neighborhoods, the applicant will use its best

efforts to minimize such heavy truck traffic between the hours of 11:00 p.m. and 6:00 a.m.

(7) Operator shall control fugitive dust emissions from oil and gas operations on all access and County roads used as haul routes as part of oil and gas operations.

(8) A drainage plan relating to the access roads will be prepared and submitted to the County.

(k) Security

(1) Security arrangements, including fencing and locked gates for oil and gas facilities shall be as mutually agreed between the operator and the surface owner.

(2) Operator may be required by the County to construct a gate at the point of access to the County road, so long as emergency vehicle passage is not restricted.

(3) Open-ended discharge valves on all storage tanks, pipelines, and other containers shall be secured where the facility site is unattended and/or accessible to the general public.

(i) Trash and Waste Removal

(1) Oil and gas operations shall be conducted in such a manner that liquid and solid wastes and other nuisances are confined to the site or disposed of in compliance with any applicable County regulations so as to avoid any adverse impact on adjoining lands. An adequate container is required at each facility to handle municipal solid waste and construction debris. All other solid waste if intended for disposal at the Pitkin County Landfill will require approval of the Pitkin County Solid Waste Coordinator prior to disposal.

(2) Chemical toilets shall be required and shall be pumped and maintained in a sanitary condition by a contractor licensed by Pitkin County.

(m) Utilities and Utility Easements

All utilities and associated utility easements required for oil and gas facilities/operations shall be provided to the site as specified by the utility providers.

(n) Visual Impact Mitigation

The County may require reasonable vegetative screening requirements on well sites and associated infrastructure. In addition, permanent oil and gas facilities shall be

located to avoid crossing hills and ridges or silhouetting to the extent reasonably possible.

(1) The visual impact mitigation provisions of these regulations shall apply if:

- (a) The oil and gas facility is located within three hundred fifty (350) feet of an existing residential dwelling, unless a waiver is obtained in writing from the homeowner, or
- (b) Public facilities, including public parks, schools, hospitals or similar facilities are within a one thousand (1000) foot radius of the facility; unless a waiver is obtained in writing from the County, school district, hospital association or other public entity; or
- (c) The oil and gas facility is located within two hundred (200) feet of a maintained public road; or
- (d) The oil and gas facility is visible from a designated scenic byway (West Elk Scenic Byway or Grand Mesa Scenic Byway).

(2) Visual Impacts

- (a) Oil and gas facilities shall be located away from prominent natural features such as distinctive rock and landforms, river crossings and other landmarks.
- (b) Oil and gas facilities shall be located to avoid crossing hills and ridges or silhouetting.
- (c) The operator shall use structures of minimal size to satisfy present and future functional requirements.
- (d) When clearing trees and vegetation for construction of oil and gas facilities, the operator shall feather and thin edges of vegetation.
- (e) The operator shall locate facilities at the base of slopes to provide a background of topography and/or natural cover.
- (f) The operator shall replace earth adjacent to water crossings at slopes less than the natural angle of repose for the soil type of the site.
- (g) The operator shall align access roads to follow existing grades and minimize cuts and fills.
- (h) Oil and gas facilities shall be painted as follows:

(I) Uniform, non-contrasting, non-reflective color tones, similar to Munsel Soil Color coding system.

(2) Color matched to land, not sky, slightly darker than adjacent landscape.

(I) The operator shall minimize damage to existing trees and vegetation.

(J) Dimensions for an oil and gas facility shall be the minimum size necessary to provide a safe work area and minimize surface disturbance.

(K) Utilities

(1) For utility corridors: varying the visual line created in the landscape to match the existing terrain and vegetation.

(2) New utility distribution lines serving oil and gas facilities shall be underground. EXCEPTION: This requirement may be waived where geologic or hydrologic conditions prohibit underground installation.

(J) One or more of the following landscape practices may be applied on a site specific basis:

Establishment of ground cover.

Shaping cuts and fills to appear as natural forms.

Cutting rock areas to create irregular forms.

Designing the facility to utilize natural or planted screens.

Construction of fences for use with or instead of landscaping.

The provisions of subsections 2.a-2.g above may be waived if the operator notifies the County that geologic, topographic, or hydrologic conditions preclude compliance, or if a surface use agreement entered into between the operator and the surface owner is inconsistent herewith.

Scenic Byways

Oil and gas facilities within the viewshed of the West Elk Scenic Byway and the Grand Mesa Scenic Byway, should generally not be located on ridgelines with a direct affect on the skyline or block viewsheds from adjoining properties.

(o) Noxious Weed Control

(1) The operator shall be responsible for noxious weed control on oil and gas facility sites and roadways during construction and operation of the facility,

until the Colorado Oil and Gas Conservation Commission reclamation bond is released or operation of the facility is terminated.

(2) The appropriate noxious weed control methods and species to be controlled shall be determined through review and recommendation by the Pitkin County Weed Coordinator.

(p) Time Frame

A mutually agreed upon time frame shall be established between the applicant and Pitkin County to determine the timeline for the completion of the construction and development including the installation of all infrastructure. In the absence of a specific agreement otherwise, the applicable time frame shall be deemed to be two (2) years from the date of the approval by the Board of County Commissioners. One (1) or more extensions may be granted by the Board.

(3) Oil and Gas Gathering Systems and Transmission Pipelines

The following performance standards apply to the siting, construction and operation of gathering systems and transmission pipelines within Pitkin County, as defined in Chapter 11.

(a) Access by Pitkin County Local Government Designee

The Pitkin County Local Government Designee (LGD) shall have access to an oil and gas facility/operation for the purpose of determining compliance with these conditions. The Local Government Designee shall comply with all safety requirements and shall preserve the confidentiality of any proprietary information which becomes known to him. Pitkin County shall also comply with confidentiality requirements, as defined and to the extent stated in the Colorado Oil and Gas Conservation Commission rules and regulations.

(b) Emergency Response Requirements

(1) Each operator with oil and gas facilities/operations in Pitkin County is required to provide an emergency response plan. The plan shall be filed with the County and updated on an annual basis or as conditions change (responsible field personnel change, ownership changes, etc.). The emergency plan shall consist of the following information, as a minimum:

(a) Name, address and telephone number, including a 24-hour emergency number of at least two (2) persons responsible for emergency field operations.

(b) An as-built facilities map showing the name, location, and description of all oil and gas facilities, including the size and type of all pipelines and isolation valves (note: isolation valves shall not be operated by anyone except the owner of the pipeline). The map shall be prepared either manually on U.S.G.S. 7.5 Minute Series maps (1"=2000'), or digitally on the County Geographic Information System Parcel Maps, if available. The as-built facilities map which includes the information regarding the location of isolation valves shall be held confidentially by the County's Emergency Management Staff and shall only be disclosed in the event of an emergency. The County's Emergency Management Staff shall deny the right of inspection of the as-built facilities map to the public pursuant to C.R.S 24-72-204(3)(a)(IV). An operator who is new to Pitkin County and has no facility shall supply the information in this paragraph within six (6) months of commencement of operations.

(c) Provide a written response plan for the potential emergencies that may be associated with the operation of the facilities. This may include any or all of the following: explosions, fires, gas or water pipeline leaks or ruptures, hydrogen sulfide or other toxic gas emissions, or hazardous material vehicle accidents or spills.

(d) Project specific emergency response plans are required for any project that involves the handling or transport of hazardous material, as determined by the County's Emergency Management Staff. This plan shall be coordinated with and approved by the County's Emergency Management Staff prior to beginning field operations.

(2) Oil and gas facilities shall be located and designed so as to provide access by fire or other emergency response personnel and vehicles.

(3) All storage tank batteries shall be bermed, subject to requirements placed on oil and gas facilities according to Colorado Oil and Gas Conservation Commission rules and regulations.

(4) The operator shall obtain an address from the county before beginning any work on the site other than site analysis and surveying. The oil and gas facility shall be incorporated into the E911 Emergency Reporting System.

(5) The operator shall provide special training and on-site orientation at the project site for personnel from the Fire District and/or the Pitkin County Hazardous Material Team. The operator agrees to furnish equipment (spill kit) to contain spills including the testing of fluids on land and in water courses to the Fire District personnel and/or the Pitkin County Hazardous Material Team in the event of a truck accident, spill and/or fire.

(6) The operator shall become a member and pay any necessary fees of the applicable Ambulance Service prior to commencing operations to construct the facility or pipeline.

(c) Erosion Control

(1) Upon the specific request of the County Planner or Board, in the exercise of its reasonable discretion, a Registered Professional Engineer in the State of Colorado or qualified geologist shall certify that any oil and gas facilities constructed on slopes of thirty (30) percent or more shall not create any significant hazard or slope failure or accelerated soil erosion and submit a report to Pitkin County.

(2) The operator will endeavor to insure that texture and composition of any disturbed areas will be similar to that of the surrounding undisturbed ground. Exhumed rock that cannot be backfilled will be disposed of in a manner that is compatible with the surrounding area. Any areas that may be compacted or rutted by wheeled traffic, and other areas disturbed by construction, will be re-contoured and reseeded in a manner that minimizes the possibility of erosion.

(d) Federal, State and Local Regulations

(1) All oil and gas operations shall comply with federal, state and local regulations applicable to the proposed operations. An applicant is required to obtain federal or state permit approval(s) before the County can grant final approval. The County will process such an application under the County's normal procedures and timetable, but County approval will not become effective until all requisite state and federal permits are obtained.

(2) An applicant shall inform the County of any notice of non-compliance by the appropriate authority concerning a state or federal permit within a reasonable time, not to exceed thirty (30) days from the applicant's receipt of

such notice. The County may not, however, take any action with regard to a pending or existing development agreement different than the state or federal agency as a result of the alleged non-compliance with approvals issued by those agencies. The County may only suspend or revoke a development agreement as a result of a notice of non-compliance if the applicable federal or state agency has suspended or revoked its corresponding permit approval as a result of the alleged non-compliance. In the event that the County has suspended or revoked a development agreement in this circumstance, it must reinstate the development agreement when the applicable state or federal agency reinstates its corresponding permit for whatever reason.

(3) By requiring such compliance in this Land Use Code, Pitkin County does not presume any absolute right to enforce state or federal regulations.

(e) Fire Protection

(1) If the oil and gas facilities are located in a severe or low to moderate wildfire hazard area, the fire mitigation plan shall include detailed information as to fuel location, hazardous materials and proposed methods of fire suppression, including the use of foam. The operator shall comply with the recommendations (if any) of the Fire District to mitigate any fire hazards at the facilities.

(2) The operator shall comply with any state and local fire restrictions applicable to the property upon which oil and gas facilities will be located. If there is a County fire ban, no open flames should be allowed without additional approval of the Board of County Commissioners or its designee.

(3) For oil and gas facilities located outside the boundaries of a Pitkin County Fire Protection District, the operator shall agree to reimburse each Fire District for all costs of responding to and fighting any fire and/or emergency situation requiring the presence of the Fire District.

(f) Floodplain

(1) Oil and gas facilities that are located within, or partially within, a special flood hazard area shall comply with the requirements of the Pitkin County Floodplain Regulations.

No oil and gas operation shall result in the handling or storage of hazardous materials in a special flood hazard area. Any other outdoor storage permitted in a special flood hazard area shall be of materials that will not float, or that are confined by a fence or other means to prevent flotation.

(g) Geologic Hazard

Oil and gas operations shall not cause a significant risk of geologic hazards.

(h) Impact on Agriculture

(1) Where irrigation and waste water ditches, pipelines, waterways or any other means of conveyance cross or adjoin the land proposed to be developed, adequate provisions shall be made to ensure that their use, including the maintenance thereof, will continue uninterrupted. Ditch rights of way shall be recognized and/or granted-if not already established. Existing historical easements utilized to gain access to ditches, headgates and fences for maintenance shall be preserved or replaced with alternate easements suitable for a continuation of historic use. No operator shall channel storm water, produced water or snowmelt runoff into any irrigation system without the written consent of the responsible irrigation entity.

(2) Oil and gas facilities/operations shall not interfere with the irrigation of neighboring lands or alter any irrigation system without the written consent of the affected entity.

(i) Insurance and Financial/Performance Security

(1) Each operator shall maintain general liability insurance for property damage and bodily injury to third parties as required by the Colorado Oil and Gas Conservation Commission, and such policy shall include Pitkin County as a certificate holder so that the County may receive advance notice of cancellation.

(2) In addition to the requirements of Section (1)3., concerning road bonds, the operator shall provide one form of the following security to assure compliance with mitigation requirements set forth in these regulations and specific conditions of approval for oil and gas gathering lines and transmission pipelines. Five thousand dollar (\$5,000.00) performance bond for each oil and gas facility up to a maximum of fifty thousand dollars (\$50,000.00) County wide blanket bond for all facilities operated by the applicant within the County; irrevocable letter of credit; or equivalent financial security acceptable to the County.

(3) For purposes of this section a "facility" is defined as: (1) Any collection of equipment that processes or stores produced oil and/or gas after production related activities are conducted at or near the well head, or (2) Each five (5) miles, or a fraction thereof, of a transmission pipeline which is part of the gathering system for oil and/or gas

production. A combined oil and gas facility shall be counted as a single facility.

(j) Notice/Exchange of Information

The operator shall notify the County with respect to the following events:

- (1) Upon the commencement of final reclamation of each project or facility installation or upon a request for waiver of final reclamation pursuant to Section 1001.C. of the Rules of the Colorado Oil and Gas Conservation Commission.
- (2) With respect to any sale, lease or other reassignment of the operating interest in the oil and gas facility/operation to another party, within thirty (30) days after the transfer.
- (3) Any permits obtained by operator from federal and state agencies pursuant to their regulations, e.g., stormwater discharge permit, including copies of said permits, as well as copies of written notices of any alleged violations of federal or state law received by operator concerning oil and gas operations in Pitkin County.

(k) Off-Site Staging Area

If an off-site staging area is required during the construction and operation of an oil and gas facility, the area shall be constructed and protected in the same manner as the access to the County road. Provided, however, if such staging area is accessed off a County road in a different location from the access to the oil and gas facility then an additional access permit shall be obtained prior to the use of the area. The staging area will be authorized for a period of one (1) year, but if required beyond that period, the operator shall file an application for its continuation under Sec. 2-20-150 at least ninety (90) days before the year expires.

(l) Roads and Access

- (1) Prior to commencing operations, the operator shall apply for and receive approval of a Pitkin County Access Permit and Road Use Permit for each oil and gas facility accessed off a County road.
- (2) No other haul route than the route approved by the Board of County Commissioners or its designee may be used without written consent of the Board.
- (3) Pitkin County shall determine the current condition of the County roads and if the roads will be able to handle the number and weight of

proposed truck traffic. The operator shall agree to bond these designated haul routes in an amount determined necessary by the Board and return the road surfaces in equal or better condition after completion of drilling. The operator shall further comply with any regulations in place in Pitkin County which require a special use permit or a road use permit to cover the proposed operations of the operator. If Pitkin County determines the existing haul routes, or a portion thereof, are not able to handle the weight and number of truck traffic, the operator and Pitkin County will negotiate an agreement to determine the operator's share of any needed improvements.

(4) The operator will avoid scheduling heavy truck traffic on County roads between October 1 and May 1 because of muddy conditions and frost heave. Operator will seek approval from the local Road & Bridge Foreman to use the roads during this period of time. If the operator cannot avoid using County roads for heavy truck traffic during this period of time, the Board may impose additional bonding requirements to remediate anticipated road damage.

(5) To the extent that heavy truck traffic resulting from the operations of the operator will impact residential neighborhoods, the applicant will use its best efforts to minimize such heavy truck traffic between the hours of 11:00 p.m. and 6:00 a.m.

(6) Operator shall control fugitive dust emissions from oil and gas operations on all access and County roads used as haul routes as part of oil and gas operations.

(7) A drainage plan relating to the access roads will be prepared and submitted to the County.

(m) Security

(1) Security arrangements, including fencing and locked gates for oil and gas facilities shall be as mutually agreed between the operator and the surface owner.

(2) Operator may be required by the County to construct a gate at the point of access to the County road, so long as emergency vehicle passage is not restricted.

(3) Open-ended discharge valves on all storage tanks, pipelines, and other containers shall be secured where the facility site is unattended and/or accessible to the general public.

(n) Trash and Waste Removal

Oil and gas operations shall be conducted in such a manner that liquid and solid wastes and other nuisances are confined to the site or disposed of in compliance with any applicable county regulations so as to avoid any adverse impact on adjoining lands. An adequate container is required at each facility to handle municipal solid waste and construction debris. All other solid waste if intended for disposal at the Pitkin County Landfill will require approval of the Pitkin County Solid Waste Coordinator prior to disposal.

(a) Chemical toilets shall be required and shall be pumped and maintained in a sanitary condition by a contractor licensed by Pitkin County.

(o) Utilities and Utility Easements

All utilities and associated utility easements required for oil and gas facilities/operations shall be provided to the site as specified by the utility providers.

(p) Visual Impact Mitigation

(1) Gathering systems and transmission pipelines shall be located to avoid crossing hills and ridges or silhouetting, to the extent reasonably possible.

(2) When clearing trees and vegetation for construction of oil and gas facilities, the operator shall feather and thin edges of vegetation.

(3) The operator shall align access roads to follow existing grades and minimize cuts and fills.

(4) The operator shall minimize damage to existing trees and vegetation.

(5) Utilities

(a) For utility corridors: varying the visual line created in the landscape to match the existing terrain and vegetation.

(b) New utility distribution lines serving oil and gas facilities shall be underground. EXCEPTION: This requirement may be waived where geologic or hydrologic conditions prohibit underground installation.

(q) Noxious Weed Control

(1) The operator shall be responsible for noxious weed control on oil and gas facility sites and roadways during construction and operation of the facility, until the Colorado Oil and Gas Conservation Commission reclamation bond is released or operation of the facility is terminated.

(2) The appropriate noxious weed control methods and species to be controlled shall be determined through review and recommendation by the Pitkin County Weed Coordinator.

(3) Wildlife

When an oil and gas facility is located within a critical wildlife habitat or wildlife migration corridor, the following mitigation measures shall be considered and addressed in one (1) or more of those documents required to be submitted pursuant to the Pitkin County Land Use Application Manual:

- (a) Avoid construction activities during critical use periods.
(Examples: near eagle nests during nesting, on big game winter ranges during winter, and during big-game hunting seasons.)
- (b) Avoid conducting on-site operation and maintenance activities during critical use hours.
- (c) Confine vehicular access to established roads except under emergency circumstances.
- (d) Install gates that can be locked at first property boundary crossed when accessing facility from closest public road.
- (e) Conduct work in streams in a manner that minimizes siltation and erosion and at a period of little or no flow.
- (f) Place pipe below channel scour depths in streams and rivers to avoid partial diversion or channel discharges.
- (g) Stabilize excess material at stream and river crossings in place or remove off site.
- (h) Complete fueling and lubrication of construction equipment away from aquatic environments.

(r) Time Frame

A mutually agreed upon time frame shall be established between the applicant and Pitkin County to determine the timeline for the completion of the construction and development including the installation of all infrastructure. In the absence of a specific agreement otherwise, the applicable time frame shall be deemed to be two (2) years from the date of the approval by the Board of County Commissioners. One or more extensions may be granted by the Board.

(s) Construction Standards/Disclosure

(1) Upon completion of the project, but prior to placing it in service, the applicant shall provide certification acceptable in the industry or other evidence satisfactory to the County Planner that the construction was completed as designed or amended or that all construction and material quality assurance standards are no less than a Class II Standard, as defined in DOT CFR 49, Part 192.5.

(2) The following disclosure statement shall be completed and included in the Development Agreement and a copy shall be sent to all property owners upon which the gathering system is located and the property owners located within the 220 yard setback on either side of the centerline of the pipeline:

"The gathering system has been designed, constructed and installed to a Class _ classification which restricts the number of separate buildings intended for human occupation (dwelling units) to _____ within the class location unit, the area extending two hundred twenty (220) yards on either side of the centerline of any continuous one (1) mile running length of pipeline."

(i) Ranching

(a) In the RR zone district, agricultural operations and practices are limited to those that were in existence prior to the date the property was zoned to Rural and Remote.

In the LIR-35 zone district, uses by right are limited to (a) farming or ranching conducted for the primary purpose of obtaining a monetary profit, and (b) single family dwelling unit and associated accessory structures and uses that may be accompanied by farming or ranching not conducted for the primary purpose of obtaining monetary profit.

(Code revised (all sections) Ord. 014-D, 2006, 07-05-08; § 4-30-20 (part) amended by [Ord. 019-09; 06-24-09](#); [Ord. 017-2021, 03-24-2021](#); [Ord. 011-2022, 02-23-2022](#)

4-30-30: CIVIC AND INSTITUTIONAL

(a) Airport

The standards of this Code may be varied for an airport use as part of the review and approval of a Master Plan in the Public and Institutional zone district.

(b) Educational Class

This use shall be limited to a maximum class size of twenty-five (25) persons, including instructors, at one time. In the RS-20 and RS-30 zone districts this use shall be limited to one (1) class per day.

(c) Hospital

In the P-I zone district, hospitals shall only be located within urban growth boundaries.

(d) Institute

In the Urban Areas, and unless the property is located in a P-I zone district, the maximum size of a lot or parcel containing an Institute shall be five (5) acres, and the maximum size of a structure containing an Institute use shall be the same as for a single family dwelling in the zone district where the lot or parcel is located. Within the P-I zone district, larger parcels and structures may be permitted pursuant to the Master Plan.

(e) Public Facilities, Major

(1) LIR-35 Zone District

In the LIR-35 zone district, only utility facilities are permitted, and only as an accessory special review use. Utility facilities that are accessory to uses on other properties are also permitted through this process.

(2) Activities of State Interest

Any Major Public Utility that is listed as an Activity of Local and State Interest in Sec. 2-40-120 shall comply with all applicable requirements for that use.

(f) Public Utilities, Minor

(1) Utility Extensions in the Rural/Remote Zone District

The following criteria are to be used in conjunction with the special review criteria established in Sec. 2-40-20 of this Land Use Code in order to allow the extension of utilities such as electricity, water, sewer, telephone and cable on lands located within the Rural/Remote zone district:

(a) Is the extension of the utility service less disruptive to the environment than an alternative source?

- (b) Does the proposed utility extension encroach upon or impact environmental hazards or resources such as floodplain, geologic hazards, slopes exceeding fifteen (15) percent in grade, wildlife habitat, wildfire, groundwater, ridgelines, vegetation, agricultural lands (irrigated meadows, dry land pastures or other environmentally significant features)?
- (c) Is there a significant visual change or impact to the land area affected by the utility extension?
- (d) Can the visual impact be mitigated?
- (e) Does the extension visually impact surrounding properties?
- (f) Do reclamation and landscaping measures appear natural as related to the former condition and surrounding environment?
- (g) Does the utility extension comply with the intent of the Rural/Remote zone district?

(g) Religious Institution

Outside of the urban growth boundaries:

- (1) No religious institution shall have a floor area exceeding (a) fifteen thousand (15,000) square feet, or (b) the maximum size of a house available in the same zone district through the purchase of transferable development rights, and
- (2) No religious institution shall have a main worship or sanctuary area with a seating capacity of greater than two hundred (200) persons.

(h) School or University

- (1) No school subject to the land use controls of Pitkin County and located outside the urban growth boundaries shall have a floor area exceeding (a) fifteen thousand (15,000) square feet, or (b) the maximum size of a house available in the same zone district through the purchase of transferable development rights.
- (2) No school subject to the land use controls of Pitkin County and located outside the urban growth boundaries shall have a main assembly area with a seating capacity of greater than two hundred (200) persons.
- (3) Universities shall be permitted only within portions of the P-I zone district located within the Aspen Urban Growth Boundary.

4-30-40: COMMERCIAL AND INDUSTRIAL

(a) Adult Entertainment Establishment

These regulations shall apply to all adult entertainment establishments, but shall not apply to any establishment otherwise exempted by C.R.S. 30-15-401(l)(III) as it currently exists or may be amended in the future.

- (1) No one under twenty-one (21) years of age shall be admitted to any adult entertainment establishment. The minimum age limitation also applies to any employees, agents, servants, or independent contractors working on the premises during hours when nude entertainment is presented.
- (2) Entertainment involving any person in a state of nudity shall only be available at adult entertainment establishments from the hours of 6:00 p.m. to 12:00 midnight, Monday through Saturday of each week.
- (3) No person shall appear in a state of nudity except within the fully enclosed portions of the structure housing the adult entertainment establishment.
- (4) No person shall operate or maintain an adult entertainment establishment within one thousand (1,000) feet of any religious institution, school, day care center or preschool, or residential dwelling unit or within one thousand (1,000) feet of any other adult entertainment establishment. The one thousand (1,000) foot distance shall be measured from any point of access to the structure housing the adult entertainment establishment to the closest property line of the property containing the religious institution, school, day care center or preschool, residential dwelling unit, or adult entertainment establishment.
- (5) No landowner or lessee shall knowingly permit an adult entertainment establishment to be operated or maintained upon their property in violation of subsection (4) above.
- (6) Any person who violates any provision of these regulations commits a Civil Infraction and upon conviction shall be punishable by a fine of three hundred (300) dollars for each separate violation. Each day of operation in violation of any provision of this ordinance shall constitute a separate violation.
- (7) The zoning administrator, chief building official, zoning inspectors, building inspectors, or other agents or employees of the County Community Development Department, or any law enforcement officer may follow the penalty assessment procedure provided in C.R.S. 16-2-201 for any violation of this Sec. 4-30-40, or may enforce the provisions of this Sec. 4-30-40 by

filing and service of a summons and complaint in accordance with County court procedures.

(8) Any adult entertainment establishment that engages in repeated or continuing violations of these regulations shall constitute a public nuisance. For purposes of this subsection, repeated violations shall mean three (3) or more violations of any provision within a one (1) year period dating from the time of any violation, and a continuing violation shall mean a violation of any provision lasting for more than three (3) or more consecutive days.

(9) The County Attorney, acting pursuant to C.R.S. 16-13-302, may bring an action in the District Court for Pitkin County for an injunction against the operation of such establishments in a manner that violates any provision.

(10) In the T zone district, adult entertainment establishments shall only be permitted within an urban growth boundary.

(b) Amusement or Entertainment Establishment

Outside of the urban growth boundaries, amusement or entertainment establishments shall be located in a structure existing on the 5th of July, 2006. No event shall have more than fifty (50) people in attendance.

(c) Automobile Service Station

(1) In the VC zone district, only one (1) automotive service station shall be permitted.

(2) In the Frying Pan Overlay zone district, only one (1) automotive service station shall be permitted. An automotive service station existing on the 5th of July, 2006 shall not be required to obtain a new special review approval after that date.

(d) Bed and Breakfast

(1) The owner of the premises shall reside in and manage the establishment.

(2) A structure used as a bed and breakfast shall not be altered in a way that changes its residential appearance or character.

(3) The total number of guest rooms shall not exceed four (4) per dwelling unit in the RS-160, RS-35, LIR 35, RS-30, RS-20, and VLP zone districts, and two (2) per dwelling unit in all other zone districts where the use is permitted by right or by special review.

(4) Bed and breakfasts shall only be permitted on lots that conform with the minimum lot size for the zone district where the property is located, as shown in Table 5-1.

(5) No cooking facilities, other than a microwave oven, shall be allowed in guest rooms.

(6) The establishment shall not contain restaurant facilities, but may provide food service for lodging guests only.

(7) Outdoor events (i.e. weddings, receptions, parties) with an attendance of more than twenty (20) guests shall be limited to one (1) event per three (3) month period. No outdoor event shall have more than forty (40) people in attendance.

(8) Occupancy by any guest shall not exceed fifteen (15) consecutive days, or more than thirty (30) days in any six month period.

(e) Building Materials and Landscaping

In the B-1 zone district, each building materials and landscaping use is restricted to a maximum of one (1) business, a maximum of three thousand (3,000) square feet of floor area, and a maximum of five (5) employees per location.

All storage of supplies, inventory, and materials shall be indoors unless the terms of the development approval permit outdoor storage. If outdoor storage is permitted, the use shall provide buffering and landscaping for outdoor storage and service areas under Sec. 7-20-130.

In the RS-30, RS-20, and AR-10 zone districts, this use shall not include retail sales to the public (as opposed to contractors), shall only be permitted to have a maximum of four (4) commercial vehicles on site at any time, shall be permitted a maximum of five (5) customer visits per day, and shall only operate between the hours of 8:00 a.m. and 6:00 p.m.

(f) Campground

Camping as a primary use is only permitted in a campground for which a development permit has been issued. Unless the development permit specifies longer periods of occupancy, camping shall not exceed fifteen (15) consecutive days or thirty (30) days in any six (6) month period. Camping may also be permitted as an accessory use of land if it meets the definition of a camping area.

(g) Wireless Communication Facility

(1) Principal Use of the Land

A wireless communication facility is a principal use of land, but may be located on a legally created lot or parcel without the need to include any additional acreage for the second principal use. A right-of-way permit or license cannot be obtained from Pitkin County until the applicant first obtains final land use approval as set forth herein and includes such approval in its request for a permit or license to utilize a public right-of-way.

(2) Building-Mounted Antennae and Towers

Building-mounted wireless communication antennae and towers are an accessory use of the land permitted pursuant to Sec. 4-10-10(e). For wireless communication facilities that are attached to a building (building-mounted antenna and towers), the building-mounted antenna and towers may not exceed ten (10) feet from the point of attachment, consistent with federal law. Through administrative review, higher heights may be permitted to building-mounted antenna and towers if an antenna can be camouflaged in accord with the standards in (6) below.

(3) Freestanding Towers

A freestanding tower shall not be located within two hundred (200) feet of an existing residence or school, except for a residence or school under the same ownership as the parcel containing the tower, or a residence or school where the owner has given consent to the location of the tower. In the case of a proposed tower location on a parcel adjacent to an existing vacant, developable residential parcel, the tower shall be located at least 200 feet from the potential residential development, which shall be determined as the required yard setback on a vacant parcel that is adjacent to the proposed tower site plus the required linear distance necessary on the tower parcel to affect a 200 foot separation, unless the owner of the adjacent vacant parcel consents to a proposed closer location.

Freestanding wireless infrastructure may be no more than twenty-five (25) feet in public right-of-ways or the maximum height in any zone district.

These standards shall apply to any Wireless Communication Facilities within public right-of-ways. There shall be a minimum of six-hundred (600) feet between individual freestanding towers in any public right-of-way.

Any freestanding towers may be approved administratively pursuant to Section 2-30-20, subject to applicable state and federal regulations. Administrative review shall take place within (90) days for new Wireless Communication Facilities and within sixty (60) days for any proposed co-location of a Wireless Communication Facility. In addition to the standards in Section 2-30-20, the Community Development shall consider:

1. The extent to which a proposed tower fills unmet coverage, capacity, or technology needs;
2. The number of carriers that are confirmed to be located (or may be located) on the tower;
3. The documented need for the proposed height based on these factors, as well as;
4. Any concealment, camouflage, or screening techniques proposed for the tower.

(4) Co-Location Required

Each new tower shall be designed to accommodate one (1) or more additional user's equipment. No facility shall unreasonably exclude a telecommunications competitor from using the same facility, tower, or location. Upon request by the Community Development Department, the owner or operator shall provide evidence explaining why Co-location is not possible at a particular facility or site.

(5) Setbacks

All towers, shall be set back from all property lines at least a distance equal to the height of the proposed tower or the required yard setback, whichever is greater.

(6) General Development Standards

(a) Design and Neighborhood Compatibility

- (1) To the extent feasible, the exterior appearance of all towers and associated support structures and buildings shall be compatible with other buildings and/or the natural environment in the surrounding area.
- (2) Support buildings located in any residential district may not be used as an employment center for any worker. If a support building is to be used as an employment center in a zone where such use is allowed, the use is subject to applicable Growth Management regulations. This provision does not prohibit the periodic maintenance or periodic monitoring of equipment and instruments.
- (3) No advertising sign or logo shall be permitted on any wireless communication facility.

(4) The decision-making body may require any other conditions to mitigate the impact of the tower on adjacent properties and uses.

(b) Buffering, Screening and Camouflaging

(1) All fences and walls shall be screened with landscaping meeting the requirements of Sec. 7-20-130(d)(2)(a).

(2) The Board may require all towers and antennae and ancillary equipment be appropriately camouflaged and screened, provided that such camouflaging and screening will not interfere with the transmission and/or reception capabilities of any antennae located on the tower.

(3) All aspects of wireless communications facilities shall be maintained in the condition and manner as represented and approved. For example; regular painting is expected, and any “stealth” elements such as branches and limbs shall be replaced as necessary if there is discoloration or deterioration of such elements.

(4) Output power levels from the tower and/or all associated antennae shall not exceed the current federally approved levels for the tower as a whole for exposure to electromagnetic radiation.

(5) Radio, television, or other electromagnetic transmission(s) or reception on other properties shall not be disturbed or diminished as pursuant to FCC standards and guidelines.

(7) Existing Towers and Base Stations

Requests for co-location, removal, or replacement of transmission equipment on an existing wireless communication tower or base station or replacement of towers may be approved with no additional review provided the action does not substantially change the physical dimensions of the tower or base station as determined by the Community Development Director pursuant to applicable federal regulations.

(8) Outside Experts and Disputes

(a) Siting of wireless communications facilities may involve complex technical issues that may require review and input by outside experts. Staff may require the applicant to pay the reasonable costs of a third-

party technical study of a proposed facility. Selection of expert(s) to review the proposal shall be at the sole discretion of the decision-making body. The expert selected must be a qualified Radio Frequency engineer with general knowledge of wireless development and the design and placement of wireless communication facilities.

(b) If an applicant for a wireless communication facility claims that one or more standards of this section are inconsistent with federal law as applied to a particular property, or would prohibit the effective provision of wireless communications within the relevant market area, the decision-making body may require that the application be reviewed by a qualified Radio Frequency engineer for a determination of the accuracy of such claims. Any costs shall be charged to the applicant.

(9) Notice

In connection with any application to install or construct any Wireless Communication Facility, the applicant shall provide written notice at least two (2) weeks prior to the comment deadline to any property owner with three-hundred (300) feet of the property where the proposed Facility will be located or, in the event that the Facility is to be located in a public right-of-way, the applicant shall provide written notice to any property owner within three-hundred (300) feet of the proposed facility. Any affected property owner may provide written comments regarding a proposed Wireless Communication Facility to the Community Development Department

(h) Arts and Crafts Studio

(1) All uses shall comply with all applicable nuisance standards in Sec. 7-100, including without limitation restrictions on odors, vibration, and glare.

(2) In the B-1 zone district, arts and crafts studios are restricted to a maximum of two thousand (2,000) square feet of floor area per business. In other zone districts where the use is a permitted or special review use, arts and crafts studios are restricted to a maximum of five thousand (5,000) square feet of floor area per business.

(i) Country Inn, Guest Ranch, or Resort Cabins

(1) This use shall not be permitted on lands previously zoned FRS-35.

(2) The owner or manager shall provide full-time management on the premises at all times when the establishment is occupied by guests.

(3) The establishment may contain a full-service restaurant that provides meal services to guests, but not to the general public.

(4) Occupancy by any guest shall not exceed fifteen (15) consecutive days, or more than thirty (30) days in any six month period.

(5) In the T zone district outside of urban growth boundaries, resort cabin developments are limited to no more than fifteen (15) cabins.

(j) Financial Institution

Drive-up facilities may only be provided for financial institutions located within the urban growth boundaries. Such facilities shall not require direct access to or from a State Highway, and shall provide on-site stacking spaces for at least three (3) vehicles (in addition to the vehicle being served) at each drive-up window or facility. Such stacking spaces shall be located so as not to interfere with traffic flow within any required parking area, or with traffic flow on any adjacent public right-of-way.

(k) General Services

In the B-1 zone district, each general services use is restricted to a maximum of one (1) business, a maximum of three thousand (3,000) square feet of floor area, and a maximum of five (5) employees. No more than one (1) of each specific use included in the definition of general services may be located within a contiguous area zoned B-1.

(l) Hotel, Motel/Lodge

(1) Each guest room in a hotel, motel, or lodge, shall have a maximum size of five hundred (500) square feet except in the VLP zone district where a larger guest room may be approved as part of a VLP Master Plan.

(2) In the T zone district outside of urban growth boundaries, hotels, motels, and lodges are limited to no more than fifteen (15) guest rooms.

(3) Occupancy by any guest shall not exceed fifteen (15) consecutive days, or

(4) In the VLP zone district hotel, motel and lodge facilities located in buildings designated to the Pitkin County Historic Register are allowed by right, but must comply with all safety requirements of the adopted building code for commercial use.

(m) Junk Yard

(1) Junk yards shall be suitably screened so that stored materials shall not be visible from adjacent properties and rights-of-way. No material shall be piled or stacked to a height in excess of fifteen (15) feet above the ground level.

(2) In the RS-30, RS-20, and AR-10 zone districts, sales of materials from the premises shall not be permitted.

(n) Medical/Dental Clinic

In the SKI-REC zone district, medical and dental clinics shall only be permitted for purposes of emergency treatment and must be located at the base of the recreation area.

(o) Meeting Hall or Conference Center

(1) Meeting halls and conference centers in the Rural Area shall only be located in structures existing on the 5th of July, 2006.

(2) No event shall have more than one hundred and fifty (150) people in attendance.

(3) Meeting halls and conference centers shall not be permitted on lands previously zoned UFRS-35.

(p) Office

(1) The following standards apply to offices located outside of a home that is occupied for residential purposes. Offices located in homes that are being occupied for residential purposes are an accessory use to the primary residential use, and are subject to the requirements of Sec. 4-30-50(f).

(2) In the B-1 zone districts, office space is restricted to a maximum of one thousand (1,000) square feet of floor area per business. Office space larger than one thousand (1,000) square feet of floor area per business is not permitted, either as a use by right or by special review.

In the B-2 zone district, office space is restricted to a maximum of one thousand five hundred (1,500) square feet of floor area per business. Office space larger than one thousand five hundred (1,500) square feet of floor area per business is a special review use.

(3) In the SKI-REC zone district, offices are only permitted at the base of the ski/recreation facility.

(q) Outdoor Recreational Use, Other

Outdoor recreational uses of land that are not listed separately in this Code and that occur on a repetitive or continuing basis more than six (6) times in any twelve (12) month period require a special review approval by the BOCC pursuant to Sec. 2-40-20, except as specified in (3) below. Outdoor recreational uses that occur less frequently require the approval of a temporary commercial use/special event permit

pursuant to Sec. 2-30-20. Outdoor recreational uses that occur entirely within a Pitkin County Open Space and Trails property may be approved by the Open Space and Trails Department pursuant to Title 12 Section 040.075 of the Pitkin County Code.

(1) In all zone districts, any outdoor recreational use that is not listed separately and that is subject to a U.S. Forest Service permit requirement shall also require a special review use approval from the County.

(2) Any outdoor recreational use that occurs on or across property that is subject to a Pitkin County Open Space and Trails management plan shall comply with all standards and requirements contained in that plan. In the event of a conflict between the provisions of this subsection (q) and the terms of any such management plan, the latter shall govern.

(3) Any commercial outdoor recreational use on County-owned property or roads requires a special review use approval from the County, subject to the criteria in Sec. 2-30-30(h)(2). The Community Development Director, the Hearing Officer or the BOCC may approve an outdoor recreational use on County-owned property or roads, based on the following:

(a) The Community Development Director may approve a proposed use, if it does not exceed the following thresholds:

(1) Involves three (3) or fewer persons on a given property/road at any given point in time; and/or

(2) Occupies no more than one on-site parking space; and/or

(3) Utilizes any given property/road no more than once a day; and/or

(4) Utilizes any given property/road no more than fifteen (15) days per year.

(b) The Hearing Officer may approve a proposed use, if it does not exceed the following thresholds:

(1) Involves more than three (3) and fewer than ten (10) persons on a given property/ road at any given point in time; and/or

(2) Occupies no more than five (5) on-site parking spaces; and/or

(3) Utilizes any given property/road no more than twice a day; and/or

(4) Utilizes any given property/road no more than thirty (30) days per year.

(c) The BOCC may approve a proposed use that exceeds the following thresholds:

(1) Involves more than ten (10) persons on a given property/road at any given point in time; and/or

(2) Occupies more than five (5) on-site parking spaces; and/or

(3) Utilizes parking spaces for any single vehicle with a passenger capacity of more than ten (10) persons; and/or

(4) Utilizes any given property/road more than twice a day; and/or

(5) Utilizes any given property/road more than thirty (30) days per year.

(r) Personal Service Outlet

In the B-1, B-2, T, and SKI-REC zone districts, each personal service outlet business shall be limited to no more than two thousand (2,000) square feet of floor area with the following exceptions for grocery stores located within the B-1 and B-2 zone Districts:

(1) In the B-1 Zone District, grocery stores shall not exceed 3,000 square feet.

(2) In the B-2 Zone District in the rural area outside the established UGB, a grocery store shall not exceed 3,000 square feet.

(3) In the B-2 Zone District within the UGB, grocery stores shall be limited to no more than ten thousand five hundred (10,500) square feet of floor area. Building permit applications for a grocery store located within the Urban Growth Boundary containing in excess of three thousand (3,000) square feet shall include a site plan demonstrating that adequate provision has been made for safe vehicular and pedestrian circulation, automobile and bicycle parking, trash and delivery service areas, and associated signage. The site plan shall be reviewed for adequacy with approval needed by the Community Development Department prior to building permit issuance.

(s) Radio or Television Transmitting Station

Outside the urban growth boundaries, no radio or television transmitting station shall have any on-site employees.

(t) Research Facility

All activities must be conducted indoors.

(u) Restaurant and/or Bar

(1) In the B-1 zone district, restaurants or bars shall not exceed two thousand (2,000) square feet of floor area.

(2) In the T zone district, restaurants and bars are allowed by right if located within the urban growth boundaries.

(3) In the T zone district, restaurants and bars located outside urban growth boundaries shall require special review approval, and shall not exceed five thousand (5,000) square feet of floor area.

(v) Retail Sale of Goods

(1) Unless subject to a smaller size limit under this Land Use Code, each business for the retail sale of goods is limited to two thousand (2,000) square feet of floor area.

(2) In the B-1 zone district, a maximum of six thousand (6,000) square feet of retail sales uses shall be permitted within each contiguous area zoned B-1.

(3) In the T zone district, retail sales of goods located outside the urban growth boundaries shall only be permitted as an accessory use, and shall be limited to two thousand (2,000) square feet of floor area.

(4) On lands in the B-1 zone district, located in the Upper Frying Pan Valley, retail sales is limited to general stores, fly and tackle shops, and similar retail businesses and public uses that serve the rural and recreational nature of the Upper Frying Pan Valley.

(w) Riding Stable or Academy (Principal Use)

(1) Indoor facilities relating to riding stables or academies shall only be permitted on lots that conform with the minimum lot or parcel size in the zone district where the property is located, and shall be limited to twenty thousand (20,000) square feet of gross floor area.

(2) Riding stables or academies located on parcels of forty (40) acres or less shall be limited to ten (10) visitor trips per day; those on parcels between forty (40) and eighty (80) acres shall be limited to twenty visitor (20) trips per day; and those on parcels of eighty (80) acres or more shall be limited to thirty (30) visitor trips per day.

(x) Timesharing, Fractional Fee, or Common Interest Community

(1) Purpose

The purpose of this section is to regulate the use of common interest time share communities and time shares in accordance with state law and Pitkin County land use policy and regulation.

(2) Applicability

This section shall apply to all common interest communities and timeshares created pursuant to C.R.S. 3-33.3-101, et seq. (the Colorado Common Interest Ownership Act), 38-33-101, et seq. (the Condominium Ownership Act) and 38-33.5-101, et seq. (Cooperative Housing Corporations), as those provisions may be amended or replaced from time to time. It is the intent of these regulations to avoid conflict with state regulation of condominiums or common interest communities, and in the event of any inconsistency between these regulations and applicable state law, the latter shall apply.

(3) Location

Timeshare or fractional fee units and communities shall be limited to those zone districts identified for timeshare and fractional fee uses in Table 4-1.

(4) General Standards: Common Interest Communities

(a) Compliance with State Law

Common interest communities shall be created as set forth by C.R.S. 38-33.3-101, et seq. (the Colorado Common Interest Ownership Act, 38-33-101, et seq. (the Condominium Ownership Act) or 38-33.5-101, et seq. (Cooperative Housing Corporations), as such provisions may be amended or replaced from time to time.

(b) General Standards Applicable to Condominiums and Cooperatives

Common interest communities that are created in the condominium or cooperative form are subject to the following general standards:

(1) The Creation of Condominiums or Cooperatives is Not a Land Use Approval

A condominium or cooperative interest created in existing structures and/or land is the creation of an interest in real property recognized by state law and does not constitute a land use approval by Pitkin County.

(2) The Creation of Condominiums or Cooperatives Does Not Effect a Subdivision of Land

The conversion of units to a condominium ownership structure or creation of cooperative interests in existing structures and/or land is not a subdivision of land and does not result in the creation of legally separate lots or parcels for purposes of development.

(3) The Creation of Condominiums or Cooperatives Creates a Separate Parcel for Taxation Purposes Only.

The conversion of units to a condominium form of ownership or creation of cooperative interests in existing structures and/or land creates a separate parcel for purposes of taxation only.

(c) General Standards Applicable to Planned Communities

Common interest communities that are created in the planned community form are subject to the following general standards:

(1) Creation of Planned Community Requires Pitkin County Subdivision Approvals

The creation of a common interest community in the planned community form constitutes a subdivision of land that requires conceptual submission, detailed submission, subdivision and final plat review and approval by Pitkin County.

(2) Conversion of Existing Development into Planned Community Requires Pitkin County Subdivision Approvals

The conversion of existing units and land into a planned community without additional development also requires the approvals described in subsection 1. above.

(d) Regulations Applicable to Common Interest Communities

Common interest communities are subject to all of the provisions of the underlying zone district and any other building, land use of regulations and approvals, except as follows:

(1) Firewall Required

Condominiums and cooperatives shall have a minimum one-hour fire wall between units that share common walls. Existing units that are converted to condominiums or turned into cooperatives shall be retrofitted to comply with the one-hour fire wall requirement. More restrictive fire wall requirements may be imposed where they are also imposed on rental units and/or separately owned units.

Common Interest Communities Allowed in Condominium and Cooperative Form

(2) The condominium and cooperative form of common interest community ownership may not be prohibited.

(5) General Standards: Timeshares

(a) Compliance with State Law

Timeshares must be created in accordance with C.R.S. 38-33-111, as such provision may be amended or replaced from time to time.

(b) The Creation of Timeshares Does Not Effect a Subdivision of Land

The creation of timeshares for existing structures and/or land is merely the creation of an interest in real property recognized by state law and does not constitute a land use approval by Pitkin County. The creation of timeshares for existing structures and/or land is not a subdivision of land and does not result in the creation of legally separate lots or parcels.

(c) Conforming Tourist Accommodations Required and Special Review Required in Certain Zone Districts

Timeshares are only permitted in conforming tourist accommodations, and are a special review use in certain zone districts.

(d) Protection of Adjacent Land Uses, One Hundred Percent Timesharing Required of All Residential Units within a Building

Timesharing must be conducted in all of the residential units in a building or not at all. For purposes of determining what constitutes a building, a building shall be considered all attached units and structures that are physically connected to one another (for example: attached townhomes shall constitute a building). Mixing timesharing with other less intensive uses is undesirable as a tourist use and is incompatible with residential uses or less intensive tourist uses.

(e) Growth Management Allocations Required

Growth management allocations shall be required for all new units and/or structures as set forth in Sec. 6-60.

(f) Mitigation Required

Timeshares must fully mitigate all impacts and pay all exactions set forth in Chapter 8.

(g) All Regulations Applicable

Timeshares are subject to all of the provisions of the underlying zone district and any other land use regulations and approvals.

(6) Declarations, Maps and Plat Requirements

(a) Declaration Requirements

Common interest community and timeshare declarations shall comply with all applicable state requirements relating to declarations, maps and platting. The declarant shall provide a copy of the declaration to the Pitkin County Assessor. The County Clerk shall not accept any declaration for recordation unless it contains the following:

(1) A statement of the type of common interest community that is being created as either a condominium, cooperative or planned community. Where timeshares are being created, a statement containing the number of interests created and the type.

(2) A statement that reads as follows: "The creation of this [common interest community, specifying by type] [timeshare] does not constitute a legal subdivision of land pursuant to the Pitkin County Land Use Code. The separate ownership interests do not result in the creation of separate, legal lots or parcels under the Pitkin County Land Use Code."

(3) A statement that reads as follows: "Any alteration, change, expansion, modification of any structure in the common interest community or timeshares may require the approval of Pitkin County."

(4) Where the declarant reserves the right to create additional units or timeshare interests, a statement that reads as follows: "The declarant has reserved the right to create additional units, or interests, which may require the approval of Pitkin County before such units or interests may be lawfully created."

(5) Where the declarant reserves the right to exercise any additional development rights or make additional improvements, a statement that reads as follows: "The declarant has reserved the right to exercise additional development rights and/or make additional improvements that may require the approval of Pitkin County before such additional development rights may be lawfully exercised or created, or additional improvements may lawfully occur."

(6) A statement that reads as follows: "The partition of any interest in a common ownership community or timeshare is prohibited. By becoming part of this common ownership community or a timeshare, any right to maintain a legal partition action is forever waived. In the case where a court may allow a partition action in a common interest community or timeshare, the interested party agrees that a partition action constitutes an evasion of Pitkin County subdivision regulations and agrees to be bound by all provisions of the Pitkin County Land Use Code relating to subdivision."

(b) Maps and Platting Requirements

Common interest community and timeshare maps and plats shall comply with all applicable state requirements. The declarant shall provide a copy of the map or plat to the Pitkin County Assessor. The County Clerk shall not accept any map or plat for recordation unless it contains the following notations and signature blocks:

(1) A signature block for the Clerk and Recorder that contains a statement that reads as follow: "This map or plat is accepted for filing in the office of the Clerk and Recorder for Pitkin County, Colorado, this day of , 19 [or 2], Plat book on Page ."

(2) An executed signature block for the County Attorney that contains a statement that reads as follows: "By signing this map or plat, the County Attorney signs only as to form as required by the Pitkin County Land Use Code. The County Attorney does not represent or warrant that this [common interest community] [timeshare] has been

created in conformance with state law." The review by the County Attorney as to form may be subject to an administrative fee.

(3) Unit boundaries shall be clearly delineated and labeled as the "unit lines" or "unit boundaries." Boundaries between units and delineations of common and limited common elements shall be clearly labeled as such. Separate addresses shall be obtained for each unit and depicted on the map or plat.

(4) A notation indicating the type of common interest community that is being created as either a condominium, cooperative or planned community. Where timeshares are being created, a notation indicating the type of timeshare and number of interests.

(5) A notation that read as follows: "The creation of this [common interest community, specifying by type] does not constitute a legal subdivision of land pursuant to the Pitkin County Land Use Code. The separate ownership interests do not result in the creation of separate, legal lots or parcels under the Pitkin County Land Use Code."

(6) A notation that reads as follows: "Any alteration, change, expansion, modification of any structure in the [common interest community] [timeshare] may require the approval of Pitkin County."

(7) Where the declarant reserves the right to create additional units or additional timeshare interests, a notation that reads as follows: "The declarant has reserved the right to create [additional units] [timeshare interests], which may require the approval of Pitkin County before such units may be lawfully created."

(8) Where the declarant reserves the right to exercise any additional development rights or make additional improvements, a notation that reads as follows: "The declarant has reserved the right to exercise additional development rights and/or make additional improvements that may require the approval of Pitkin County before such additional development rights may be lawfully exercised or created, or additional improvements may lawfully occur."

(7) Subdivision Required to Create Separate Lots in Condominiums, Cooperatives and Timeshares

(a) Subdivision Required to Create Separate Lots

No legal, separate lot or parcel shall be recognized for the interests in condominiums, cooperatives or timeshares unless

subdivision approval is granted by Pitkin County. Exemptions from the County's subdivision process shall not be allowed.

(b) Mitigation Required

Under all circumstances, the approval of any subdivision associated with condominium, cooperatives or timeshare interest shall include a requirement that all development exactions be paid as if the subdivision was a new development as provided in Chapter 8.

(c) Growth Management Allocations or Exemption Required

Under all circumstances, the approval of any subdivision associated with condominium, cooperatives or timeshare interest shall include a requirement that growth management allocations or an exemption be obtained as provided in Secs. 6-60 and 6-30-150.

(8) No Partition Permitted

No partition of any common interest community or timeshare interest shall be permitted. The filing of any legal partition action shall be considered an evasion of the Pitkin County subdivision requirements.

(9) Growth Management Allocations Required to Create New Structures, Dwelling Units or Timeshare Interests

Any additional structures or dwelling units in a common interest community shall require growth management allocations or exemptions pursuant to Secs. 6-60 and 6-30-150.

(10) Additional Timeshares Require Growth Management Allocations or Exemptions.

The creation of any additional timeshare interests shall require growth management allocations pursuant to Sec. 6-60.

(y) Vehicle and Aircraft Sales and Service

(1) A gas station or accessory service facility shall not exceed a total land area of thirty-two thousand (32,000) square feet.

(3) Aircraft service and sales shall only be permitted in the P-I zone district.

(Code repealed and reenacted (all sections) Ord. 014-D, 2006, 07-05-08; § 4-30-40 amended (part) [Ord. 007-2014, 04-23-2014](#); [Ord. 008-2014, 04-23-14](#); [Ord. 037-18, 08-22-18](#); [Ord. 010-2019, 04-24-2019](#); [Ord. 023-2012, 09-26-2012](#) [Ord. 033-2023, 11-15-2023](#)

4-30-50: ACCESSORY AND TEMPORARY USES

(a) Accessory Structure with Bathing Facility

- (1) Must be located on lots or parcels that contain at least thirty-five (35) acres.
- (2) Must record a deed restriction approved by the County Attorney ensuring only one (1) dwelling unit exists on the parcel.
- (3) One (1) structure on the parcel shall be designated “principal” for height measurement purposes.
- (4) For purposes of calculating Road Impact Fees each of the structures containing bathing facilities shall be considered a separate dwelling unit and will be assessed the appropriate fee based on the size of the structure. Floor area of other residential structures, not containing bathing facilities, will be treated as if attached to one (1) of the structures with bathing facilities. For the purpose of calculating development exactions or impact fees based on aggregate floor area or square footage rather than on a per unit basis, the aggregate of all residential floor area or square footage on the parcel will be cumulated and will be used for calculating fees.

(b) Use Specific Standards for Temporary Land Uses and Activities

(1) Agricultural Stand

Vendors are permitted to sell Colorado-grown agricultural or farm products subject to compliance with the standards in this section and approval of a Temporary Use Permit under Sec. 2-30-20.

- (a) The vendor shall have the permission of the owner of the property for use of the site for vending purposes.
- (b) The vending stand or vehicle is adequately set back from the adjacent road, does not block any required access to or egress from the site, does not disrupt vehicular or pedestrian circulation in the surrounding area, and does not cause a traffic hazard or safety problem. In addition, an off-road parking area of sufficient size shall be provided to accommodate the anticipated number of customers.

- (c) The temporary structure, if any, complies with applicable adopted building codes and other County regulations.
 - (d) Not more than two (2) vendors may be allocated a permit for any single location.
 - (e) Temporary use permits for agricultural products shall not exceed a period of five (5) months.
 - (f) Stand operators may receive an unlimited number of development permits; however when more than two (2) operators wish to use a given location during the same time period, preference shall be given to new permit applicants in the order in which they apply.
 - (g) Identification signs must comply with the sign standards in Sec. 7-60-50.
- (2) Motion Picture Filming and Still Photo Shoots. An applicant may obtain authorization from Pitkin County to film a movie, television show, commercial, or promotional spot or to conduct a still photo shoot if the following standards are met:
- (a) At least five (5) working days prior to the production, the applicant shall e-mail to the Community Development Department a brief description of the nature of the production, including dates, times and locations. If the standards of this Sec. 4-30-50 (b) (2) can be met, the Community Development Director will issue an acknowledgement of the applicant's e-mail and the production may proceed. If these standards cannot be met, the applicant may instead apply for a temporary land use and activities permit from the Community Development Director.
 - (b) The production shall be limited to no more than five (5) vehicles and a total of fifteen (15) people, including the actors/models and crew.
 - (c) All staging for the production, including but not limited to, the equipment, actors/models, crew, vehicles and trailers, shall be located on private property.
 - (d) There shall be no off-site impacts from the production.

- (e) There shall be no parking on public roads for the production. A minimum of sixteen feet (16') of emergency access shall be maintained on private roads at all times.
- (f) The applicant shall obtain all necessary federal/state permits and shall comply with the Pitkin County Code and applicable state and federal regulations.
- (g) Outdoor filming/photography shall last for no more than three (3) days and
shall only occur between the hours of 7:00 AM to 7:00 PM or one (1) hour after sunset, whichever is later. These limits include the time necessary for set-up and take-down of the production. Indoor filming/photography shall not be subject to these time limits.
- (h) The applicant may be required to provide proof of general liability insurance for the duration of the production, with Pitkin County being named as an additionally insured, with two million dollars (\$2,000,000) aggregate coverage and one-million dollars (\$1,000,000) coverage for each occurrence, or provide a waiver of insurance approved by the County Attorney.
- (i) The applicant shall comply with the following noise standards:

7:00 AM to 7:00 PM: 65 dB(A); and
7:00 PM to 7:00 AM: 55 dB(A).
- (j) A helicopter shall not be used for filming unless the permit application has been referred to the Board of County Commissioners, which may authorize the use of helicopters at their discretion considering the following:
 - (i) Whether the use of a helicopter will result in a clear and demonstrable marketing benefit to the community;
 - (ii) The helicopter will be used for a live broadcast;

(iii) The applicant shall demonstrate that the helicopter will not cause detrimental impacts to wildlife; and

(iiii) Safety concerns shall be adequately addressed.

(3) Seasonal Farm Worker Housing Unit: A Recreational Vehicle may be used for seasonal farm worker housing in conjunction with an on-site agricultural operation subject to compliance with the standards in this section and approval of a Temporary Use Permit under Section 2-30-30

- (a) Up to two (2) units may be permitted on a lot/parcel with a minimum of five (5) acres.
- (b) The unit may only be located on a lot/parcel in a zone district where “Farming” or “Ranching” are allowed uses in Table 4-1, but not including RR (Rural Remote), SKI-REC and P-1 (Public-Institutional) zone districts.
- (c) The agricultural operation produces and sells food for which the primary purpose is human consumption by the public in Colorado.
- (d) The unit may only remain on-site from March through November unless:
 - 1. Applicant demonstrates a full-time over-winter producing operation that warrants full-time on-site staff, in which case Applicant may apply for a separate Temporary Use Permit for use from December through February or
 - 2. Applicant demonstrates with the Temporary Use Permit that the unit will be properly stored, winterized and uninhabited from December through February.
- (e) The unit may only be occupied by workers (and their immediate family) employed full time by the agricultural operation where the seasonal farm worker housing unit is located.
- (f) The unit must provide a minimum of one dedicated bathroom per four inhabitants; and must have electrical power, heat, cooking, bathing and toilet facilities self-contained with the unit with storage of potable, gray and black water.

- (g) The unit must be connected to a permitted power source. Generators are prohibited.
- (h) The unit shall not be connected on on-site water or wastewater systems.
- (i) Applicant shall provide a maintenance contract for waste removal.
- (j) The unit shall be sited outside of constrained areas and in compliance with required setbacks.
- (k) The unit shall be accessed from an existing driveway or roadway
- (l) The units shall be screened to the maximum extent practicable from public roads and neighboring residences.
- (m) All refuse shall be contained within an approved Wildlife Proof Refuse Container or a refuse container which is stored within an approved Wildlife Proof Dumpster Enclosure.
- (n) Fires are prohibited.
- (o) Exterior lighting is prohibited, except as required for safety.
- (p) Dogs shall be kenneled.
- (q) The unit shall comply with National Fire Protection Association (NFPA) 1192 and 1194.

(4) Other Temporary Land Uses and Activities. An application for other types of temporary land uses and activities may be approved if the Community Development Director determines that (a) the applicant, or a member of the applicant's family, has not applied for a permit for the same or similar use or activity more than twice within the prior twelve (12) month period, and (b) that the applicant will mitigate any significant adverse impacts that the use or activity will have on surrounding properties. The permit may impose conditions related to hours of operation, parking, lighting, signage or other matters to promote the public health, safety and welfare and to limit adverse impacts on surrounding properties.

(c) Agricultural Buildings

- (1) Agricultural Buildings are subject to the floor area exemptions in Sec. 5-20-70(j)(5).
- (2) In the R-15, R-15A, R-15B, R-6, VR and MHP zone districts, a greenhouse is the only allowed agricultural building.
- (3) In the AH and AH-PUD zone districts, a greenhouse is the only allowed agricultural building, except if the lot/parcel is limited to one single family dwelling unit, then any agricultural buildings(s) is allowed based on the lot/parcel size.

(d) Camping Area

Camping as an accessory use, outside of a campground approved by a development permit, is only permitted on property owned by the camper or the camper's family. Occupancy of any tent, recreational vehicle, or any other form of temporary dwelling shall be limited to fifteen (15) consecutive days, and to no more than thirty (30) days in any six (6) month period.

(e) Caretaker Dwelling Unit

These standards are for the purposes of providing a voluntary caretaker dwelling unit on a legally created lot or parcel in the County. Caretaker dwelling units created pursuant to these provisions, shall not be used for mitigation of employee housing requirements as established elsewhere in this Land Use Code.

(1) CDU as Permitted Accessory Use

In the RS-160, RS-35, RS-30, RS-20, AR-10, AR-2, R-30, R-15, R-15A, and R-6 zone districts, one (1) caretaker dwelling unit shall be a permitted accessory use provided that:

- (a) It is attached to a single family home ("principal dwelling");
- (b) The lot or parcel on which it is located conforms to the minimum lot area requirements for each dwelling in the zone district in which the caretaker dwelling unit is located, as shown in Table 5-1;
- (c) The caretaker dwelling unit shall not exceed one thousand (1,000) net livable square feet on lots or parcels that are thirty thousand (30,000) square feet or greater in lot area, and seven hundred (700) net livable square feet on lots or parcels that are less than thirty thousand (30,000) square feet in lot area;
- (d) The floor area of the caretaker unit shall be included in the total allowed floor area for the lot or parcel of land (e.g., if the CDU is

seven hundred (700) square feet, the maximum total area of the primary residence and other included accessory structures shall be seven hundred (700) square feet less than what would apply without the CDU);

(e) Two (2) off-street parking spaces shall be provided for each caretaker dwelling unit.

(f) The applicant shall by deed restriction or other permanent commitment running with the land guarantee that the caretaker dwelling unit:

(1) Shall not be required to be rented;

(2) Shall not be sold or otherwise conveyed or separated from the original parcel regardless of the ultimate form of ownership of the caretaker unit;

(3) Shall be limited to occupancy by (i) not more than two (2) adults, and related children, who qualify as (and have been found by the Housing Office to be) employees of the community under such guidelines as may from time to time be established, or (ii) members of the owner's immediate family, even though they may not qualify as employees of the community.

(4) Shall be rented for terms not less than six (6) months if rented.

(g) The Caretaker Dwelling Unit restriction may be removed by the property owner upon approval of the Community Development Director, subject to the requirement that the dwelling is removed or modified. If modified, the remaining improvements must no longer be capable of occupancy as a dwelling unit and must meet otherwise applicable requirements of this Land Use Code.

(h) The provisions of this regulation are for the purpose of providing a voluntary Caretaker Dwelling Unit on a legally created lot or parcel in the County. Any unit approved under this provision of this Land Use Code shall not be used for mitigation of employee housing requirements as established elsewhere in this Land Use Code

(2) CDU As Special Review Accessory Use

A caretaker dwelling unit that is (a) located in the LIR-35, VR, B-2, VC, P-I, or T zone district, or (b) located on a lot or parcel that does not meet the minimum lot area

requirements for each dwelling unit in the zone district where it is located, as set forth in Table 5-1, or (c) is detached from the principal single-family dwelling on the lot or parcel, shall require approval through the Special Review Use process in Chapter 2, and shall meet the requirements of subsections (1)(c) through (1)(g) above.

(g) Home Occupation

A home occupation shall:

- (1) Employ no more than one (1) person who is a non-resident of the
- (2) premises, except in the Rural/Remote zone district, where no employees are allowed who do not reside on the premises;
- (2) Operate pursuant to a valid occupational license held by the resident of the dwelling unit, if applicable;
- (3) Be confined to no more than twenty-five (25) percent of the existing residential floor area on the property;
- (4) Not advertise, display or otherwise indicate the presence of the home occupation on the premises;
- (5) Not sell any stock in trade, supplies or products on the premises;
- (6) Not store outside of the dwelling unit or accessory structure any equipment or materials used in the home occupation;
- (7) Not utilize mechanical, electrical, or other equipment or items that produce noise, electrical or magnetic interference, vibration, heat, glare, smoke, dust, odor or other nuisance outside the residential building or accessory structure; and
- (8) Not operate more than one (1) more than one commercial vehicle associated with the home occupation.

(h) Satellite Reception Device

The following standards shall apply to the installation and use of all accessory satellite reception devices in all zone districts. If the dish does not comply with the following standards, see Sec. 2-30-20(g)(8).

Satellite reception dish devices accessory to residential uses that are one (1) meter (40 inches) or less in diameter are allowed as a use by right. If located in the VR zone district such dishes shall be located so as to function effectively while minimizing

visibility from neighboring properties and public rights-of-way, in order to preserve the historic character of the Redstone townsite.

Satellite reception dish devices accessory to industrial/commercial uses that are two (2) meters (80 inches) or less in diameter are allowed as a use by right. If located in the VC zone district, such dishes shall be located so as to function effectively while minimizing visibility from neighboring properties and public rights-of-way, in order to preserve the historic character of the Redstone townsite.

(i) Special Events

(1) Purposes. These standards are intended to govern the time, place and manner in which special events may be conducted on county roads, county property or private property. These standards are necessary to ensure that an event's demands for health, fire, police, transportation, and other public facilities and services do not exceed the level of service that is normally provided in that area of the county and that the event does not create undesirable impacts on the residents of that area of the county. Specifically, the purposes of these standards are to ensure that special events:

- (a) Are conducted in a safe and orderly manner by requiring adequate provision of access, parking, sanitary facilities, utilities and security, ensuring the structural integrity and safety of temporary facilities, and requiring appropriate guarantees for site cleanup and restoration;
- (b) Are reasonably suitable for the neighborhood, considering the duration and intensity of the proposed special event, and will minimize any significant impacts of the event on surrounding landowners, residents and businesses; and
- (c) Do not create public disturbances or become public nuisances, endanger life, health or public safety, disrupt traffic, or threaten or damage public or private property.
- (d) These standards are also intended to ensure that the organizers and sponsors of special events coordinate with governmental agencies and neighbors well in advance of the date the event will be held and accommodate the requirements of those agencies and the concerns of neighbors in planning for and conducting the event.

(2) Applicability/Permit Required

(a) These standards shall apply to any special event proposed to occur on public or private property in those zone districts listed in Table 4-1 at the locations where special events are allowed uses or master plan uses.

(1) A private and/or non-commercial special event that takes place within the Aspen or Basalt Urban Growth Boundary or within the Rural Area of Pitkin County (except for the Rural and Remote [RR] zone district) on private property that is owned or leased by the person or persons who are having the special event is exempt from the requirement to obtain a special events permit.

(2) A private and/or non-commercial special event that takes place within the Aspen or Basalt Urban Growth Boundary or within the Rural Area of Pitkin County (except for the Rural and Remote [RR] zone district) on private property that is not owned or leased by the person or persons who are having the special event is also exempt from the requirement to obtain a special events permit, but the event shall be considered a special event for purposes of determining whether the subject property meets the definition of a Special Events Venue.

(3) A private and/or non-commercial special event that takes place within the Rural and Remote (RR) zone district shall be classified as requiring no permit, a minor permit or a major permit pursuant to sub-section (d) below.

(b) Conduct of a special event shall require a special event permit which shall be obtained from the Community Development Department.

(c) An application for a special event permit shall be processed as an administrative review, as described in Sec. 2-30-20. This shall authorize the Community Development Director to approve, approve with conditions, or deny the application, as specified in Sec. 2-30-20 (f) or to refer the application to a higher body, as specified in Sec. 2-30-20 (i). “The Community Development Director shall refer all special event permit applications to the appropriate recognized caucus for review and comment prior to issuance of a permit.”

(d) An application for a Special Event in the Rural and Remote (RR) Zone District may be classified by the Community Development Director as requiring no permit, a minor permit, or a major permit. The Community Development Director shall utilize Table 1, in this Code section, as applicable, as a guide in determining how to classify the special event application. The Director is also authorized to utilize his or her administrative discretion and professional judgment in making this determination.

(e) An application that is classified as a major event shall require the County's Special Events Committee to convene to review the permit request. The applicant shall be invited to appear before said Committee when it conducts that review.

(f) If a special event is anticipated to occur annually, or on a periodic basis, the applicant may request a multiple-event special event permit, which may authorize the special event for up to three (3) years. Multiple-event special event permits shall require the applicant to notify the Community Development Department at least ninety (90) days prior to each event to identify the date and location of the event and any changes in the nature, size, or activities to be conducted since the preceding event covered by the permit. If proof of insurance coverage was required for previous approvals, the applicant shall submit updated evidence of insurance coverage for the dates of the upcoming event. If the Community Development Department determines that the changes in the event were not anticipated or covered by the existing permit, and could have unanticipated adverse impacts on surrounding properties or traffic on County rights-of-way, or the event has not complied with provision of previous approval(s) the permit may be revoked and/or the Department may require that the applicant apply for and receive a new special events permit or modify the event to avoid the unanticipated adverse impacts.

(3) Review Standards. The following standards provide an overall checklist for the applicant and County staff to use in preparing and reviewing a permit application. The County staff is hereby authorized to determine which of these standards should apply to the application, based on the type, scale and location of special event that the applicant is proposing.

(a) Water Supply. The applicant shall provide an adequate and safe supply of potable water that complies with the requirements set forth by the Colorado Department of Public Health and Environment and the County Environmental Health Department.

(b) Sewage Disposal/Toilets. The applicant shall provide an adequate number of portable toilets, including ADA accessible toilets, along with an adequate number of hand washing stations, as determined by the Environmental Health Department. Separately- enclosed toilets shall be provided for males and females. All portable toilets shall be removed immediately following the conclusion of the event.

(c) Solid Waste/Recycling. The applicant shall present to the Environmental Health Department a plan for the sanitary collection and disposal of solid waste from the event. The plan shall describe the number of trash receptacles and recycling receptacles that will be provided and the location of said receptacles. Provision shall be made to ensure receptacles are emptied when they become full. Outdoor trash receptacles and any on- site dumpsters used to collect trash shall have a latching mechanism making them bear proof. Trash and recyclable materials shall be removed from the site immediately following the conclusion of the event.

(d) Safety/Emergency Services. The applicant shall provide a safety and operations plan that includes procedures for dealing with on-site medical emergencies and crowd control. The plan shall address the following elements:

(i) First aid and other emergency services shall be provided on- site. The number of certified medical providers that shall be on-site and the required types of standby equipment that shall be available shall be determined by the Fire Marshal and the Sheriff. If necessary, an enclosed medical treatment structure shall be provided.

(ii) Adequate infrastructure, as determined by the Sheriff, shall be provided on-site to allow for emergency communications with hospital, police and fire services.

(iii) Adequate private security personnel, as determined by the Sheriff, shall be provided for crowd and traffic control at the event. The Sheriff shall have the authority to require that law enforcement personnel be on-site at the applicant's expense to monitor crowd control and to regulate traffic. The Sheriff may require that a crowd

control fence enclosing the site, with gates that allow for emergency access/egress, be provided.

(iv) The event (including structures, access, etc.) shall comply with all applicable building codes and fire district safety codes. Any fireworks displays or temporary tents shall require a permit issued by the appropriate County agency. All electrical cables, wires and equipment shall be covered, concealed, secured and/or located in such a manner that event participants will not be placed at risk.

(e) Parking. The applicant shall provide a plan for on- or off-site parking facilities for the event. There shall be no parking permitted on County roads.

(i) Shuttle service shall be provided before, during and after the event whenever off-site parking is proposed. Event organizers should provide advance notice encouraging event participants and event workers/volunteers to carpool to the event. The applicant shall demonstrate to the Community Development Director that the access roads between the site and the parking area are capable of handling the shuttles without adversely impacting the neighborhood.

(ii) The parking area shall offer a sufficient number of parking spaces to accommodate the maximum number of attendees anticipated at the event. The applicant shall demonstrate to the Community Development Director that an appropriate number of entrance and exit locations will be provided and that those entries and exits offer adequate sight distances. Safe and efficient circulation routes shall be provided within the parking area. Signs may be allowed to direct participants to parking and other features of the event.

(f) Traffic Control. The applicant shall provide a plan showing access routes to be used for the event, signs that will be used to direct traffic and whether persons will be employed to monitor and direct traffic at all points of ingress and egress and at other points around the event. Plans and

routes to safely accommodate pedestrians shall also be provided.

(i) The applicant may need to have tow trucks available on an “on-call” basis to remove vehicles that have parked illegally on County roads.

(ii) Requests for full or partial closures of County roads shall be at the sole discretion of the Board of County Commissioners.

(iii) The applicant may be required to post signs, hand out fliers door-to-door, or take out an ad in a local newspaper or radio if traffic is expected to significantly impact the residents of the area.

(g) Noise. The event shall comply with all applicable County noise standards. Noise that is incompatible with the surrounding area shall be prohibited. No exterior amplifiers, speakers or similar equipment shall be permitted outside of the temporary buildings, structures or tents on the site unless specifically authorized by the permit.

(h) Lighting. Lighting sources shall be shielded and directed inward, downward, and away from adjacent properties to the maximum extent possible to ensure lighting does not shine or reflect unreasonably beyond the event’s boundaries. For events held at night, the area of assembly and primary circulation routes shall be adequately illuminated to provide for safety of participants and safe egress from the site.

(i) Dust Control. The applicant shall provide for reasonable dust control at the event site. The applicant shall apply water to unpaved parking areas and circulation routes at least twice a day so as to mitigate dust. The applicant shall also ensure there is adequate dust control during site setup and teardown, including controlling dust on any unpaved routes event personnel will use to access the site.

(j) Time Limitations.

(i) The special event permit shall specify the hours of operation for the event and shall specify the number of days a special event may be conducted.

- (ii) Set-up for an event in the Rural and Remote (RR) zone district shall not be initiated more than 48 hours prior to the time the event is scheduled to begin and shall have no more than 48 hours to deconstruct the event. Other locations shall be initiated in conformance with the time limitations set forth in the permit for the event.
- (iii) Any temporary structures that were erected shall be removed from the property within 24 hours after the conclusion of the special event unless the permit specifies a more or less restrictive time limit.
- (k) Food and Liquor Service. If food and beverages, including liquor, will be sold or given to participants, then food service and liquor licenses shall be obtained, as required by the Colorado Department of Public Health and Environment and the Board of County Commissioners, respectively. The applicant shall coordinate with the Environmental Health Department if there is to be food service at the event and is responsible for satisfying all applicable health code and sanitation requirements.
- (l) Insurance and Indemnification. The applicant may be required to provide proof of general liability insurance for the duration of the event as determined by the Community Development Director.
- (m) Legality of Structures. Temporary structures that are to be used in the event shall have undergone all required inspections by the Chief Building Official. Any permanent/buildings or structures that are to be used in the event shall have been built with a valid building permit or shall have obtained a temporary or final certificate of occupancy from the Chief Building Official.
- (n) Site Restoration. The grounds shall be maintained each day of an event. The applicant shall submit an irrevocable letter of credit, bond, damage/cleanup deposit or other cash guarantee, in an amount to be determined by the County. The guarantee shall cover site grading, restoration, removal of structures and cleanup to ensure the site is restored to its former condition and any damages are repaired.

(o) Master Plan. The proposed special event shall be consistent with the applicable County Master Plan

(p) Neighborhood Compatibility. The proposed special event shall be generally compatible with the character of the neighboring land uses.

(q) Specific Standards for the Rural and Remote (RR) Zone District. Within the Rural and Remote (RR) Zone District tent structures shall not exceed 1,000 square feet in size and no more than 200 people shall congregate at an event. However, more than 200 people may attend an event that passes through the Rural and Remote (RR) Zone District, such as an athletic race or similar type of event. A Special Events Venue is a prohibited use in the Rural and Remote (RR) zone district so more than 3 events at a site per calendar year are not permitted.

(r) Additional Standards Applicable to Particular Areas of the County

(4) Violations and Penalties

(a) Chapter 10 of the Land Use Code sets forth Pitkin County's procedures to address violations of land use approvals and the penalties that may be applied when enforcing the Code. The County staff is hereby authorized to apply those procedures and penalties to the enforcement of violations of a special events permit.

**TABLE 1
SPECIAL EVENTS THRESHOLDS
RURAL AND REMOTE ZONE DISTRICT (RR)**

Characteristics (see note 1 below)	Permit Is Not Required	Minor Event Permit Is Required	Major Event Permit Is Required
Number of Attendees	50 or fewer.	More than 50 but not to exceed 100.	More than 100 but not to exceed 200.
Frequency of Event (# of times per calendar year)	1	2 or 3	Not allowed (see note 4 below).
Duration of Event	1 day		More than 1 day
Size of Proposed Structures/Tents	Up to 400 sq. ft.	More than 400 sq. ft. but less than 1,000 sq.	Structures/tents shall not exceed 1,000 sq.

		ft.	ft.
Live Amplified Music	Within a permanent building.	Within a temporary building or tent or outside.	
Fireworks	Not permitted in the Rural and Remote zone district		
Helicopters	None	None	1 or more
Notes: 1. An application for a special event shall be classified by the Community Development Director as requiring no permit, a minor permit or a major permit, using the criteria in this table as a guide in making this determination. The Director is authorized to utilize his or her administrative discretion and professional judgment in classifying the application. 2. If an event has any single characteristic that would place it into the next higher permit category then it may be classified as requiring that type of permit. So, for example, an event that does not require a permit due to its number of attendees and single day duration but which would erect more than 400 sq. ft. in structures/tents could be classified as one which requires a minor event permit. 3. No more than 200 persons shall congregate for an event in the Rural and Remote (RR) Zone District. However, more than 200 people may attend an event that passes through the Rural and Remote (RR) Zone District, such as an athletic race or similar type of event. 4. If more than 3 special events are planned to occur at a site or in a building within a calendar year, then the site or building must receive special review approval as a “Special Events Venue” to authorize that frequency of events. However, Special Events Venue is a prohibited use in the Rural and Remote (RR) zone district so more than 3 events at a site per calendar year are not permitted.			

(j) Use Specific Standards for Special Events Venue

(1) An applicant for a special events venue shall provide a plan for the proposed use describing the site on which the use would occur and how the venue would be operated. The plan shall, at a minimum, describe the following aspects of the proposed use:

(a) Whether events would occur indoors, within a permanent structure, in temporary, tent-like structures, outdoors, or some combination of these approaches. The applicant shall describe whether any new structures will be built or existing structures will be expanded and provide drawings illustrating any such structures.

(b) The number of events anticipated per calendar year, including the number of times per week or month that the venue would be operated. The times of day when events would take place shall also be specified. The maximum number of attendees at events shall be stated.

(c) Whether employees will be hired to provide support services to the venue or if those services will be provided under contract by other businesses.

(d) The plan shall also provide responses to the applicable review standards for special events that are listed in Sec. 4-30-50 (j). This shall include describing how the venue will provide an adequate water supply, properly disposal of sewage and solid waste, provide parking, ensure there is a safe environment for conduct of events at the venue, and control impacts such as traffic, noise, lighting, dust and similar matters.

(2) The applicant for a special event venue shall demonstrate that the proposal complies with the standards for special review uses listed in Sec. 2-30-30 (h) (2). Public noticing is required as described in Chapter 2, Table 2-1

(a) In its consideration of the standards for special review uses, the Board shall give particular consideration to the proximity of the proposed venue to surrounding residential areas and whether events that are proposed to occur at the venue would be consistent with the character of the neighborhood or would be disruptive to neighbors. This shall take into account whether the venue has a permanent structure in which events would take place, and the extent to which events would occur outside or in temporary, tent-like structures. If temporary structures are to be erected, the applicant shall describe for how long those structures are expected to stand. This shall also consider whether the proposed events would have amplified music, fireworks, or similarly impactful activities that occur outside.

Consideration shall also be given to the frequency of the events planned for the venue and the time of day when events would be scheduled.

(b) The Board shall also consider any prior approvals that were granted to the structure or site to be used as a venue, including whether any limitations or conditions were placed on such prior approvals, and whether designation of the structure or site as a special events venue would be consistent or inconsistent with the representations made and the conditions imposed on those prior approvals.

(c) Within 30 days of the anniversary of a Special Events Venue approval, the Applicant shall submit an “annual review” to the Community Development Director that outlines the operation for the year. This outline shall include information about the preceding year of operations, any changes to the approved plan that have occurred, and any complaints received. The

annual review shall be heard before the BOCC at a duly noticed public hearing. The BOCC may, at its discretion, modify or revoke the Special Review approval at this public hearing.

(k) Snow Dumping/Trucking/Storage

When a special review use is requested for a snow storage area, the applicant shall comply with the following conditions when siting the storage area:

(1) Setbacks

(a) Setbacks shall be regulated by Section 7-20-80 and Chapter 5.

(2) Slopes

(a) Slopes in excess of 10% shall be avoided

(3) Groundwater

(a) Snow storage and/or dumps shall not be located in areas of high groundwater.

(b) It must be demonstrated that the groundwater high water mark is four (4) feet or more below snow storage area.

(4) Flood plain

(a) Snow storage areas shall not be located within the 100-year floodplain

(5) Surface Runoff

(a) Snow storage shall not result in surface runoff unless best management practices are utilized to remove sediment and other contaminants from melt water and promote infiltration vs. runoff

(6) Dumping into waterway or water-body

(a) Snow storage areas shall comply with section 7-20-80(d)(12)

(b) Snow shall not be pushed or dumped into any waterway or water-body at any time.

(7) Refuse removal/disposal

- (a) It will be a condition of approval that at the end of each winter season (when all snowmelt is complete) that documented cleanup occurs at the site to remove non-snow refuse from the storage site.
- (8) Scenic Impact Consideration
 - (a) Potential scenic impacts of the location of proposed snow storage areas shall be addressed in the application.
- (9) Revegetation
 - (a) If a snow storage area is abandoned for more than two years, revegetation of the site (where necessary) is required.
- (10) Trips
 - (a) The Applicant shall present a dumping schedule for consideration that includes hours of operation and estimated number of trucks per hour/day, source of snow, and load size in average volume.
- (11) A log shall be created of the criteria outlined in condition #10(a) and submitted for review to the Community Development Department, annually, when soil monitoring tests are submitted.
- (12) Noxious Weed Control
 - (a) The Applicant is required to control for noxious weeds.
- (13) Snow dump sites shall be sited at least 200 feet from private wells and public water systems. The 200 foot setback from a public water system shall be measured from the source from which water is collected for the public water system.
- (14) A snow dump site shall be located at least fifty feet (50') from a property line. The BOCC may increase this setback if it is found that runoff or other negative impacts may implicate an adjacent property. The BOCC may decrease this setback if it is found that runoff or other negative impacts will not implicate an adjacent property.
- (15) An Applicant for an existing snow dumping site shall test soil annually in the spring, or after the dumping site has melted. An applicant for an initial snow dumping site shall provide soil test results in their application to the Community Development Department. In both cases, the following contaminants shall be tested.
 - Volatile Petroleum Hydrocarbons (VPH)

- Extractable Petroleum Hydrocarbons (EPH)
- B-Tex Test
- Oil and Grease

(a) Sampling testing shall occur on each snow dump site. If a dumping site is larger than one (1) acre every acre of the snow dump site shall be tested.

(b) Testing shall occur on the down gradient of the site, and the test sample should be taken from an eight (8) inch depth.

(c) The threshold levels for the B-tex test shall be as follows:

Benzene = 1ppm

Toluene = 1000 ppm

Ethylbenzene = 1000 ppm

Xylene = 280 ppm

d. The threshold levels for Total Petroleum Hydrocarbons (TPH) shall be 500 ppm. TPH is the sum of VPH, EPH, and Oil and Grease.

(e) If testing shows that a site is over any of the thresholds mentioned above, the Applicant shall not be allowed to dump snow at that site and reapplication will be required.

(Code repealed and reenacted (all sections) Ord. 014-D, 2006, 07-05-08; § 4-30-50 amended (part) [Ord. 027-10, 11-17-10](#); [Ord. 005-11, 04-13-11](#); [Ord. 008-14, 04-23-14](#); [Ord. 006-15, 02-25-2015](#); [Ord. 040-2019, 11-20-2019](#); [Ord. 014-2020, 04-08-2020](#); [Ord. 23-2007, 08-28-2007](#); [Ord. 025-2009, 10-14,2009](#); [Ord. 007-2013, 04-24-2013](#); [Ord. 031-2013, 12-18-2013](#); [Ord. 010-2019, 04-10-2019](#); [Ord. 020-2025, 03-12-2025](#); [Ord. 044-2025, 12-03-2025](#)

4-30-60: RENEWABLE ENERGY USES

(a) Intent:

The intent of these provisions is to achieve Pitkin County's goal of increasing the use of clean, alternative energy by advocating for the development of renewable energy resources and to provide the foundation for a resilient distributed energy system.

(b) General:

- (1) All renewable energy systems that produce ten (10) kilo-watts (KW) or more shall have energy storage provided with a capacity of at least twenty-five (25) percent of the systems daily average production in kilo-watt hours (kWh).
- (2) When feasible, systems shall be installed in partnership with the utility provider.
- (3) Whenever possible, renewable energy technology/equipment shall be part of a cradle to cradle life-cycle, where the manufacturer who sells the product disposes/recycles it at the end of its usable life.

(c) Energy Storage:

- (1) Energy storage not based on battery technology is subject to administrative review pursuant to section 2-30-20.
- (2) Interior energy storage shall be used in preference of exterior energy storage.
- (3) Exterior energy storage buildings shall have a maximum of thirty-six (36) square feet of floor area exempt from Total Gross Allowed Floor Area, pursuant to section 5-20-70(l). This exemption does not apply to solar farms or solar facilities. The buildings shall be no higher than ten (10) feet tall to the roof ridge as measured from existing or finished grade, whichever is more restrictive.
- (4) Where visible from public roads, exterior storage systems and buildings shall be screened with vegetation.
- (5) To accommodate release of excess energy or dumping of excess utility system load, storage systems must have a means of being attached to the electric utility grid, unless infeasible or the entire building/property being supplied by the system is disconnected from the utility grid.
- (6) If an exterior storage system has not been replaced or upgraded, or the Community Development Department has not been provided with proof of maintenance and proof of performance, after ten (10) years, then the Community Development Department may require replacement or upgrading of the system, or the removal and disposal of the system, and

re-grading and revegetation of the area to its condition before development.

(d) Solar Energy Collectors:

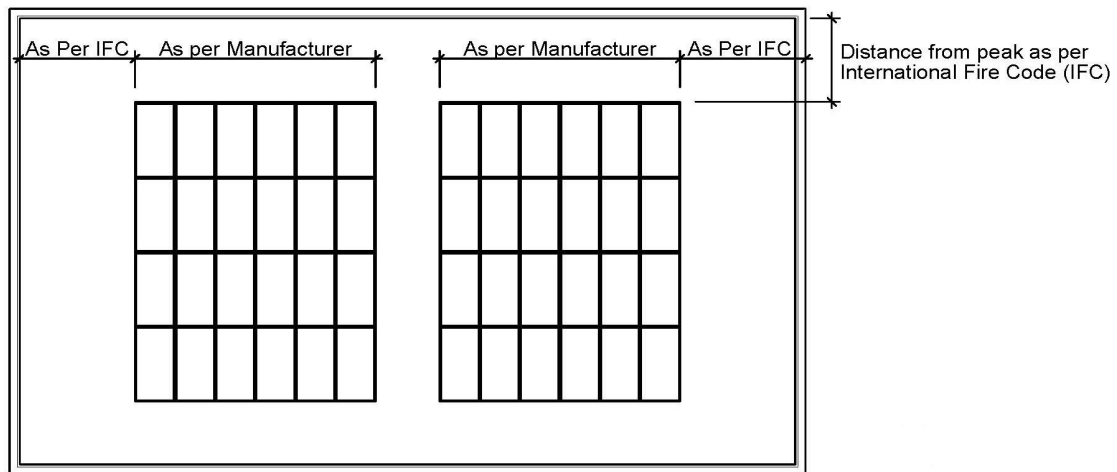
(1) General:

- (a) Solar energy collectors shall be sized such that the energy collected will be primarily for onsite purposes, and not primarily for the generation of electricity to be used off-site.
- (b) In the RR zone district, solar energy collectors may only be used for on-site residential purposes.
- (c) Pursuant to Section 7-20-120(d)(4), solar energy collectors shall not protrude above a ridgeline.
- (d) Solar energy collectors shall not shade an evapotranspiration leach field.
- (e) When evaluating a site for installation of solar energy collectors, rooftop panels are preferred over ground mounted panels, unless good cause is demonstrated to the Community Development Department that ground mounted panels are necessary, or are a better solution for the site.

(2) Roof Mounted Solar Energy Collectors:

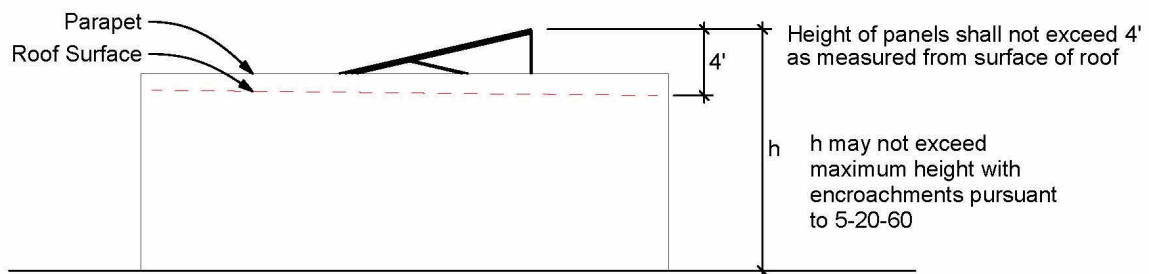
(a) General:

- (1) Roof mounted solar energy collectors shall not result in any structure exceeding the maximum height limit with encroachments pursuant to Section 5-20-60.
- (2) Roof mounted solar systems and other ancillary development (racking assembly, balancing system, utility boxes, etc.) shall have a “matte” finish or be of a non-reflective material/color. Equipment that is painted shall be maintained.
- (3) Solar energy collectors constructed on roofs shall have a setback that complies with the County’s currently adopted international fire code.



(b) Flat Roof Mounted Solar Energy Collectors:

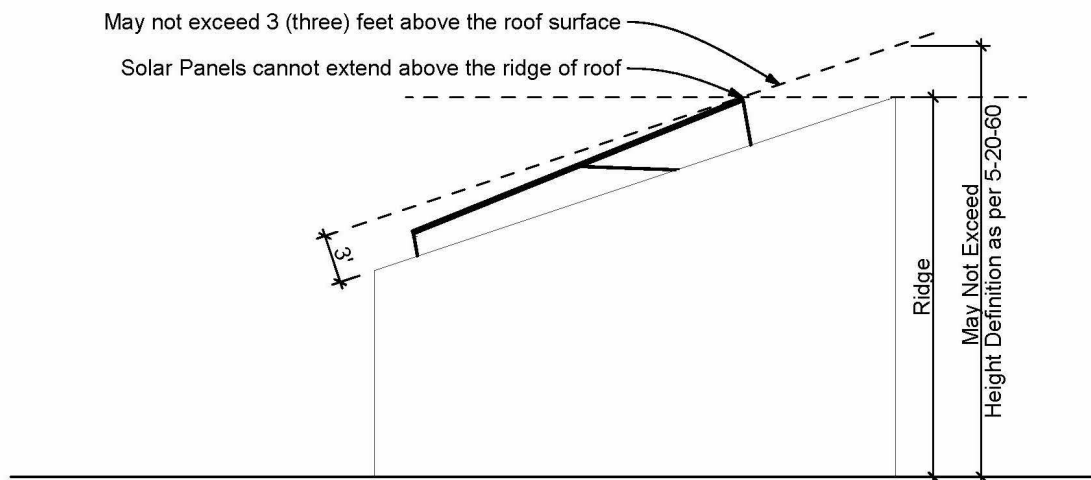
- (1) A roof is considered to be a flat roof for solar purposes if it is less than or equal to a two-twelve (2/12) slope.
- (2) Measuring to the top of the panel, solar energy collectors constructed on flat roofs may be raised up to four (4) feet above the surface of the roof, but may not exceed the maximum height with encroachments pursuant to section 5-20-60.



Flat Roof Solar Panel: Height Allowance

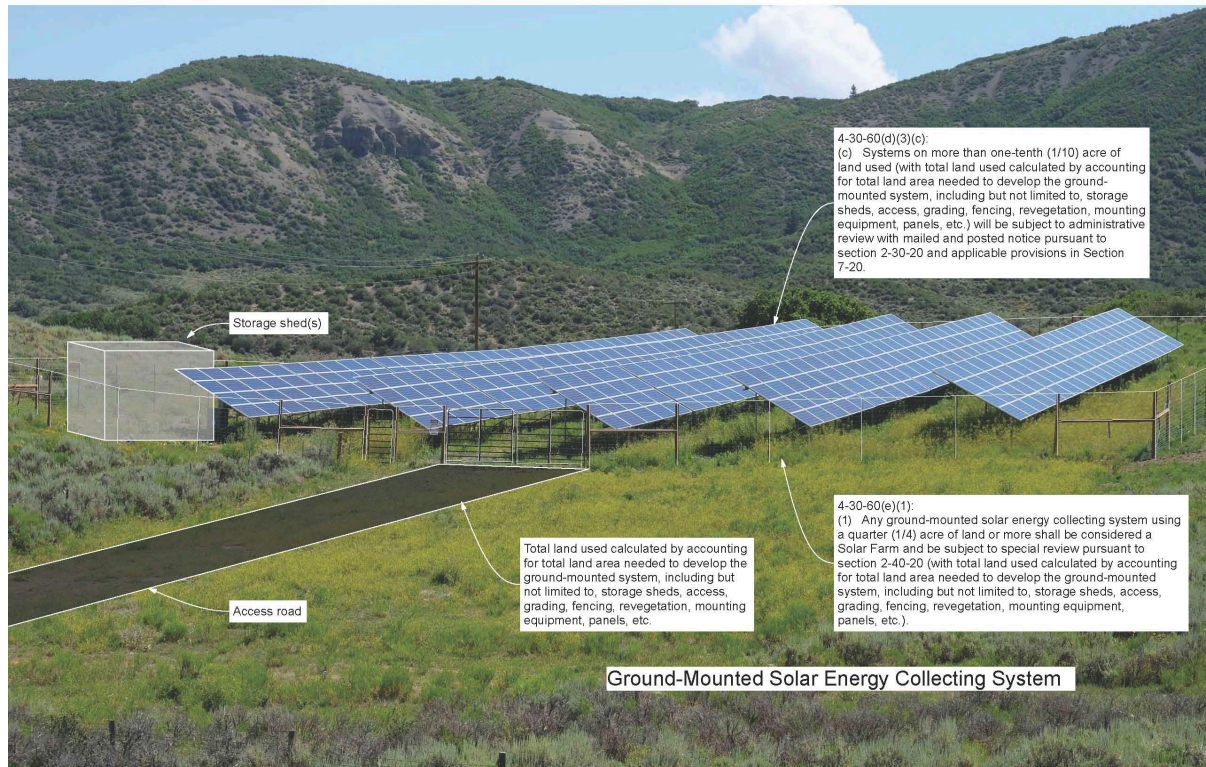
(c) Pitched Roof Solar Energy Collectors:

- (1) A roof is considered to be a pitched roof for solar purposes if it is more than a two-twelve (2/12) slope.
- (2) Solar energy collectors on pitched roofs shall not protrude above the ridge of the roof.
- (3) Measuring to the top of the panel, solar energy collectors on pitched roofs may be raised up to three (3) feet above the surface of the roof, but may not exceed maximum height with encroachments pursuant to section 5-20-60.

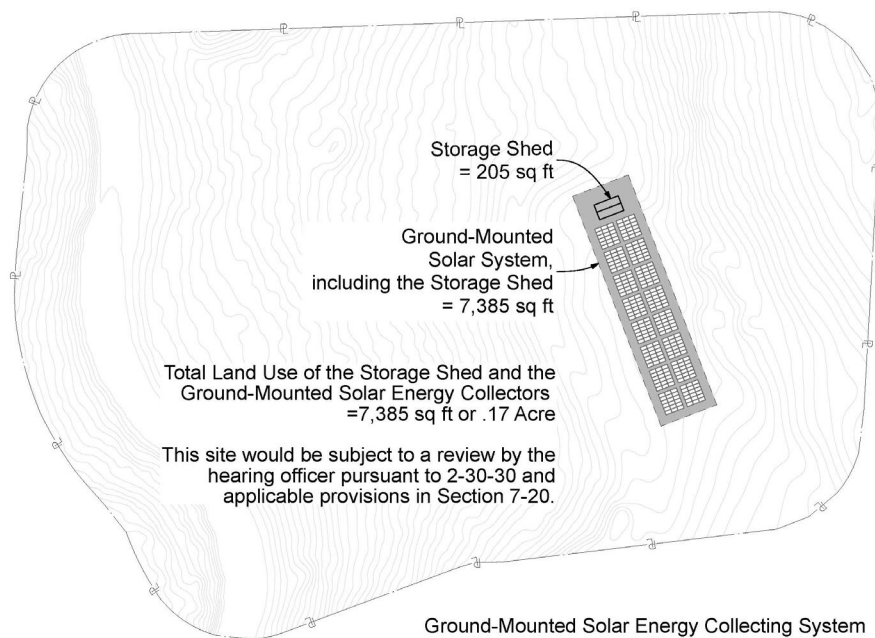


(3) Ground Mounted Solar Energy Collectors:

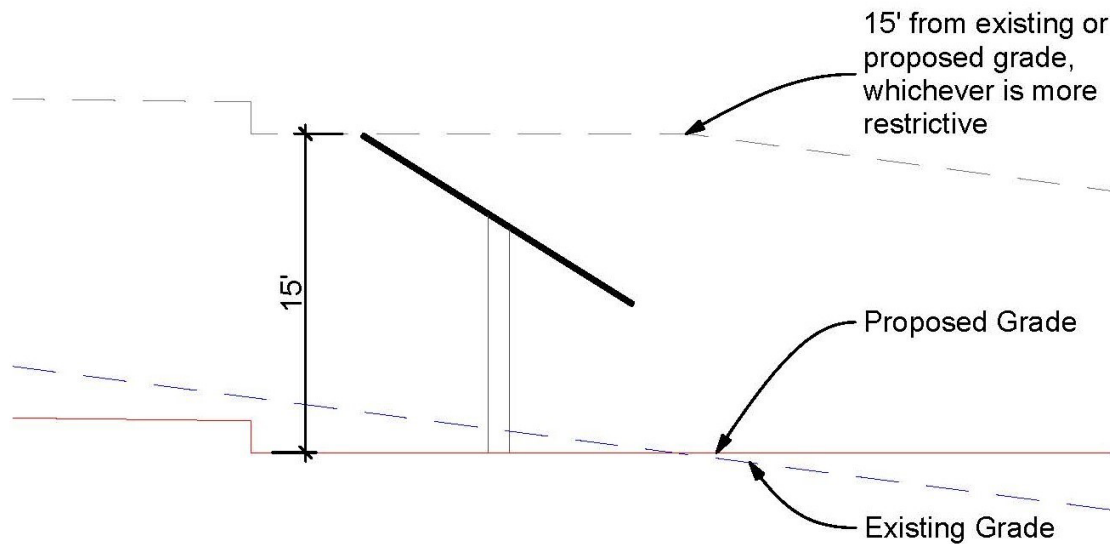
- (a) The standards of this section apply to all ground based solar systems less than one-quarter (1/4) acre of land used (with total land used calculated by accounting for total land area needed to develop the ground-mounted system, including but not limited to, storage sheds, access, grading, fencing, revegetation, mounting equipment, panels, etc.). A ground-mounted system that is one-quarter (1/4) acre of land used or larger shall comply with the Solar Farm standards listed below, section 4-30-60(e).



- (b) Ground mounted systems on less than, or equal to, one-tenth (1/10) acre of land used (with total land used calculated by accounting for total land area needed to develop the ground-mounted system, including but not limited to, storage sheds, access, grading, fencing, revegetation, mounting equipment, panels, etc.). shall be subject to administrative review pursuant to section 2-30-20 and applicable provisions in Section 7-20.
- (c) Systems on more than one-tenth (1/10) acre of land used (with total land used calculated by accounting for total land area needed to develop the ground-mounted system, including but not limited to, storage sheds, access, grading, fencing, revegetation, mounting equipment, panels, etc.) will be subject to administrative review with mailed and posted notice pursuant to section 2-30-20 and applicable provisions in Section 7-20.



- (d) Ground mounted solar energy collectors and other ancillary development (racking assembly, balancing system, utility boxes, etc.) shall have a “matte” finish or be of a non-reflective material/color. Equipment that is painted shall be maintained.
- (e) The height of ground mounted solar collectors shall be the minimum necessary to generate usable energy at maximum tilt, but shall not exceed a maximum height at maximum tilt of fifteen (15) feet in height as measured from natural grade or finished grade, whichever is more restrictive.



- (f) Ground Mounted solar energy collectors shall be located within an approved activity envelope pursuant to Section 2-30-20(g)(20), unless exempted pursuant to section 7-10-30 of the Code.
 - (g) The minimum efficiency of the solar system used shall be the residential National Renewable Energy Laboratory (NREL) Solar Photovoltaic System Cost Benchmark Report model assumptions for panel efficiency from the benchmark report issued in the year of installation of the solar energy collectors or from the most recent benchmark report released.
 - (h) If the system falls into a state of disrepair, or is inoperable for a period in excess of one-hundred and eighty-five (185) days, then the Community Development Department may require replacement or upgrading of the system, or the removal and disposal of the system, and re-grading and revegetation of the area to its condition before development
- (e) Solar Farm
- (1) Any ground-mounted solar energy collecting system using a quarter (1/4) acre of land or more shall be considered a Solar Farm and be subject to special review pursuant to section 2-40-20 (with total land used calculated by accounting for total land area needed to develop the ground-mounted system, including but not limited to, storage sheds, access, grading, fencing, revegetation, mounting equipment, panels, etc.).

- (2) Siting of Solar Farms shall be in conformance with Chapter 7 and the Activity Envelope/Site Plan Review submission.
- (3) Site plans shall include locations of all panels and accessory development associated with the Solar Farm such as utility trenching, access roads, service plans, and structures.
- (4) Solar Farms shall be installed with the approval of and in partnership with the District Utility Provider for the Solar Farm's Location.
- (5) Solar Farms shall provide energy storage for produced energy or utility system loads at fifty (50) percent or more of daily average production in kilo-Watts (kW).
- (6) Upon application for a Solar Farm, the Applicant shall submit a construction management plan and a decommissioning plan.
- (7) A Solar Farm's application shall include a covenant for the maintenance, renovation and removal of the farm.
- (8) The height of ground mounted solar collectors shall be the minimum necessary to generate usable energy at maximum tilt, but shall not exceed a maximum height at maximum tilt of fifteen (15) feet in height as measured from natural grade or finished grade, whichever is more restrictive, except to accommodate site specific needs if approved through special review.
- (9) Ground mounted solar energy collectors and other ancillary development (racking assembly, balancing system, utility boxes, etc.) shall have a "matte" finish or be of a non-reflective material/color. Equipment that is painted shall be maintained.
- (10) Accessory buildings for energy storage associated with the solar farm shall be limited to one thousand (1,000) square feet in aggregate, exempt from floor area.
- (11) The Applicant shall submit an annual report that includes information about the preceding year of operations of the project, power output, comments received, or any other information pertinent to the operation of the solar farm. This annual report shall be submitted to the Community Development Director for review.

- (12) On site power lines associated with the solar farm shall, to the maximum extent practical, be placed underground.

(f) Solar Facility:

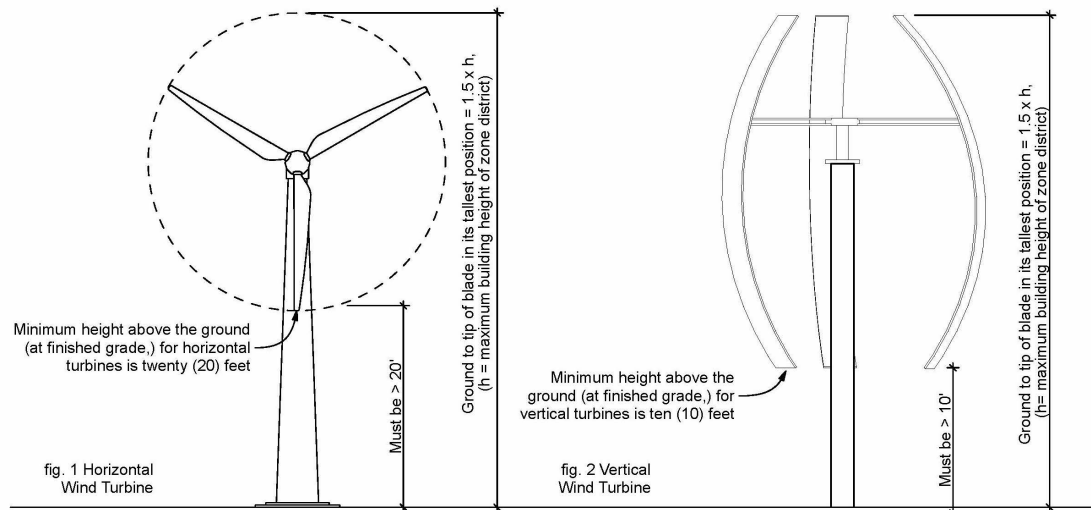
- (1) Any solar system producing two (2) Mega-Watts of energy or more shall be considered a public utility and be subject to all utility standards pursuant to sections 4-30-30(f) and 7-50, as well as all standards and regulations of the State of Colorado's Public Utilities Commission.
- (2) Solar Facilities shall comply with sections 12-30-140, 12-30-170, 12-40-90, and 12-40-120.
- (3) Siting of Solar Facilities shall be in conformance with Chapter 7 and the Activity Envelope/Site Plan Review submission.
- (4) Site plans shall include locations of all panels and accessory development associated with the solar farm such as utility trenching, access roads, service plans, and structures.
- (5) Solar Facilities shall be planned and built with the approval of and in partnership with the local Utility Provider.
- (6) Solar Facilities shall provide energy storage for produced energy or utility system loads at fifty (50) percent or more of daily average production in kilo-Watts.
- (7) Upon application for a Solar Facility, the Applicant shall submit a construction management plan and a decommissioning plan.
- (8) Solar Facility applications shall include a covenant for the maintenance, renovation and removal of the facility.
- (9) Ground mounted solar energy collectors heights shall be the minimum necessary to generate usable energy at maximum tilt, but shall not exceed a maximum height at maximum tilt of fifteen (15) feet in height as measured from natural grade or finished grade, whichever is more restrictive, except to accommodate site specific needs as approved through review.
- (10) Ground mounted solar energy collectors and other ancillary development (racking assembly, balancing system, utility boxes, etc.) shall

have a “matte” finish or be of a non-reflective material/color. Equipment that is painted shall be maintained.

- (11) Accessory buildings associated with the Solar Facility shall ~~county~~ count as floor area as permitted by the zone district in which the property is located.
- (12) The Applicant shall submit an annual report that includes information about the preceding year of operations of the project, power output, comments received, or any other information pertinent to the operation of the Solar Facility. This annual report shall be submitted to the Community Development Director for review.
- (13) On site power lines associated with the Solar Facility shall, to the maximum extent practical, be placed underground.

(g) Wind Powered Energy Generators:

- (1) Where feasible, vertical turbines shall be used in lieu of horizontal turbines.
- (2) Wind energy generation systems shall not occupy land in excess of one-tenth (1/10) of an acre of contiguous land.
- (3) A wind powered energy generator shall be used primarily for private purposes, and not primarily for the generation of electricity to be used off-site. The maximum height of a wind powered electric turbine shall not exceed one and a half (1.5) times that of the principal building height allowed in the property’s zone district, measured from the ground to the tip of the blade in its tallest position, and the minimum height of the turbine blade above ground level shall not be less than twenty (20) feet for horizontal turbines, and ten (10) feet for vertical turbines.



- (4) No part of any wind powered electric generator, including guy wire anchors, may extend closer to any property boundary than the height of the tower.
- (5) Except during severe wind storms, wind powered electric generators shall not cause a sound level exceeding fifty (50) dba, as measured at the closest neighboring inhabited dwelling.
- (6) All wind systems shall be equipped with a manual and automatic override brake to keep blade rotation within system design parameters during adverse weather or wind in excess of design.
- (7) Base screening shall be installed using vegetation to mitigate the visual impact so long as it does not hinder system performance.
- (8) All wind powered electric generators shall meet all applicable requirements of the Land Use Code, applicable adopted building codes, the National Electric Code, and regulations of the Federal Aviation Administration.
- (9) If wind energy generators have remained inactive for one-hundred and eighty-five (185) days or more, then the Community Development Department may revoke approval of the system and require the system to be removed and disposed of, and the location of the system to be re-graded and re-vegetated to its conditions before development.

(h) Micro Hydroelectric Energy System:

- (1) Wheel turbines, generators, and other mechanical equipment shall be enclosed in a wheelhouse/pumphouse structure. Only one structure is permitted, and the structure shall be detached from other structures and sized only to house necessary mechanical equipment for the hydroelectric system.
- (2) Maximum size for this structure shall be 150 square feet, eight (8) feet in height, and used solely for hydro electricity generation.
- (3) The maximum size of a system shall be 500 kW.
- (4) The system shall be designed to blend in with its natural surroundings and be of earth tone colors. All system components, including the structure and pipes shall not create visual or auditory impacts, or create impediments or other unnatural hazards upon wildlife.
- (5) A System placed in a fish bearing stream must include structures to prevent fish from entering the system.
- (6) A System shall be designed to reduce the length of the reach of the diversion to the maximum extent feasible in an effort to avoid de-watering a stream.
- (7) The system must be in compliance with Federal Energy Regulation Commission 4.30(29) and other applicable standards, including U.S. Army Corps of Engineers and State Division of Water Resources, and shall demonstrate appropriate water rights.
- (8) Dams are not allowed for micro hydroelectric systems. Partial diversion structures such as weirs or head gates are allowed with proper permitting. Diversions from the river/stream shall be designed so that minimum stream flows are not threatened in the reach between the intake and the return of the hydroelectric system.
- (9) If a system is not in continuous use for more than one (1) calendar year for reasons other than low stream flows, disruption to stream habitat, or drought, the structures associated with a hydroelectric system may be required to be removed. Prior to issuance of a permit for the micro hydroelectric system, the applicant shall grant Pitkin County a non-revocable license to enter the property for decommissioning the system. A covenant shall also be recorded that acknowledges that the property owner

shall bear the cost of decommissioning the facility. This cost will include rehabilitation of the site. 4-30-60

- (10) A system proposed within the riparian and wetland setbacks specified in Sec. 7-20-80(a)(2) shall also comply with Section 7-20-80(c).
- (11) Micro hydroelectric generation systems that divert water from an irrigation ditch, rather than from a creek or stream, and do not disrupt riparian and wetland habitat or encroach into a riparian and wetland setback shall be reviewed by the Community Development Director through Site Plan review. Section 7-10-30: Exempt Development Activities could apply if the system is not located within a constrained area as defined by Chapter 7. In all cases the proposal must contain proof of adequate water rights.
- (12) The County shall review the impacts of a micro hydroelectric system on the natural environment with consideration given to the intensity and amount of electricity generated by the system.
- (13) Appropriate water rights and an augmentation plan shall be submitted for review and approval if the micro hydroelectric system proposes construction of ponds and/or storage reservoirs.

(Code repealed and reenacted (all sections) Ord. 014-D, 2006, 07-05-08; § 4-30-60 added Ord. 040-2019, 11-20-2019; [Ord. 017-2020, 04-22-2020](#)

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